

ADMINISTRATIVE LAW II



Topic 1

NATURAL JUSTICE

Administrative law developed to play 2 major roles in public administration.

1. To promote efficiency in administration.
2. To promote the rights of individuals in society by checking the abuse of power.

It is therefore important that in running public affairs efficiently, public authorities should have due regard to individual rights. Administrative law has therefore developed a number of safeguards against the possible abuse of power. An individual who is aggrieved or likely to be detrimentally affected by an administration action may obtain redress for his / her grievance and forestall any injustice likely to be done using various methods provided under the law.

Brief background

Natural justice is a legal philosophy used in some jurisdictions in the determination of just, or fair, processes in legal proceedings. It is sometimes taken as a process of rational logical deduction. The concept is very closely related to the principle of natural law (Latin expression of *jus naturale*) which has been applied as a philosophical and practical principle in the law in several common law jurisdictions, particularly the UK and Australia. According to Roman law certain basic legal principles are required by nature, or so obvious that they should be applied universally without needing to be enacted into law by a legislator. The rules or principles of natural justice are now regularly applied by the courts in both common law and Roman law jurisdictions. Natural justice operates on the principles that man is basically good, that a person of good intent should not be harmed, and one should treat others as one would like to be treated.

Definition and principles

Natural justice may be simply defined as the natural sense of what is right and wrong.

It has also been referred to as fair play in action. (**Ridge v Baldwin**) It has been recognised since time immemorial that delegation of functions is accompanied with designed procedures to reconcile administration needs with safeguards for the individuals; this entails among others principles of natural justice. In **Local Government Board Vs Arlidge [1915] AC 120**, House of Lords held that the common law rules of natural justice required little more from a department than the



carrying out in good faith of its usual procedures. The brief facts of this case were that a Hampstead council had made a closing order in respect of a house which appeared unfit for human habitation. The owner appealed to the local government board as prescribed by the housing and town planning Act. A public inquiry was held which confirmed the closing order. Arlidge applied to court contending that the decision was invalid because the board did not disclose which official actually decided the appeal. That Arlidge had not been heard orally by that official and had not seen a report of the inspector who conducted the inquiry. While rejecting the contention, **the House of Lord held** that parliament having entrusted judicial duties to the executive body, must be taken to have intended to follow the procedure which was its own and was necessary if it was capable of doing its work efficiently. So long as the officials dealt with the question referred to them without bias and gave parties adequate opportunity of presenting the case, the board could follow its own established procedures even though there not of court of law.

The right to a hearing in accordance with the rules of natural justice may be expressly provided for or the courts may imply such an obligation exists under common law. There are essentially two sections to the rules of natural justice; the first being derived from the Latin maxim "*Audi alteram partem*" (let the other side be heard). This is the duty of to allow persons affected by a decision to have a reasonable opportunity of presenting their case. The essence of this principle is that in certain contexts, prior to a decision being taken in the exercise of statutory power which may adversely affect the interests of individuals, those individuals should be alerted to the fact of, and the reasons for, the impending decision or action, and be permitted reasonable opportunity to make representations.

The second part of the rules of natural justice is derived from the Latin maxim "*nemo judex in causa sua*" (no one can be the judge in his own cause). The essence of this

principle is to disqualify persons having an interest in a matter over which they are presiding, or in respect of which there may be an appearance of bias, from taking certain types of decisions, thus rendering void such any decision taken in breach of the principle of natural justice. This gives rise to a duty to act fairly, to listen to arguments, and to reach a decision in a manner that is untainted by bias.



According to **A. de Smith** in his book **Judicial Review of Administrative Action**, "...The governing principle ought to be that authorities empowered to make decisions that are seriously detrimental to the liberty, proprietary rights, livelihood, status or reputation of individuals should be required to give prior notice and opportunity to be heard to those who are directly affected, except where the imposition of such duties would be impracticable or manifestly contrary to the public interest or Parliamentary intent..."

It should be noted that the principle of natural justice has been embedded in the 1995 Constitution of the Republic of Uganda and its one of the non derogable rights.

Art. 42 of the 1995 Constitution provides that any person appearing before any administrative official or body has a right to be treated justly and fairly and shall have a right to apply to a court of law in respect of any administrative decision taken against him / her. This is fortified by **Art 28 of the 1995 constitution**, which provides for a right to a fair hearing. It provides that in the determination of civil rights and any obligation, or in criminal matter a person shall be given a fair, speedy and fair hearing before an independent tribunal established by law. Accordingly, *Article 44 of the Constitution provides inter alia that notwithstanding anything in the Constitution, there shall be no derogation from the enjoyment of the right to fair hearing.* The duty to act fairly represents the standard of procedural administrative justice with which they will require compliance. In the words of **Megarry V-C** in **McInnes V Onslow Fane** [1978] 3 ALLER 211 at 219, '...if one accepts that 'natural justice' is a flexible term which imposes different requirements in different cases, it is capable of applying to the whole range of situations indicated by the terms such as 'judicial', 'quasi-judicial' and administrative.'

As a result, judicial review may be instituted on grounds of denial of natural justice

and in such cases the court will mainly get concerned with the procedure by which the administration authority reached a particular decision. The principles / rules of natural justice have their origin in common law but they have also been codified under various statutes.

Judicial review refers to the power of the High court to exercise control and supervision over the legislative, executive and judicial powers of administrative bodies, by review it means the



re-consideration of the action or decision of the authority with a view to determining whether it acted in accordance with the law and whether it acted in accordance with the principles of natural justice. The court will be concerned with whether the authority acted in accordance with provisions of the law under which it purported to have acted or whether or not it was biased or whether the authority gave the aggrieved party the opportunity to present its side of the case. In this regard, the remedies the court can grant are;

a) **Certiorari**

b) **Mandamus**

c) **Prohibitions**

Certiorari issues to quash the decision of the authority. **Mandamus** issues to command the authority reconsider the matter all over again in accordance with the law. Prohibition issues to command the authority not to proceed further in acting illegally. The court can also make orders declaratory of the rights of the parties and whether the authority has acted illegally. In **Chief Constable of the North Wales Police V Evans** [1982] 1 WLR 1155 HL, **Lord Hailsham** stated that the remedy of judicial review is intended to protect the individual against the abuse of power by a wide range of authorities, judicial, quasi-judicial, and administrative powers. That it is not intended to take away from those authorities the powers properly vested in them by law and to substitute the courts as the bodies making the decisions. It is intended to see that the relevant authorities use their powers in a proper manner. That the purpose of the remedies is to ensure that the individual is given fair treatment by the authority to which he has been subjected. That the function of court is to see the lawful authority is not abused by unfair treatment and not to attempt itself the task entrusted to that authority by law.

THE RIGHT TO NATURAL JUSTICE ANALYSED

A fair hearing

The principle of natural justice is expressed in Latin as “*audi alteram partem*” which is translated as “hear the other side.” Elaborate rules have been laid down to ensure that a party to any proceedings can be heard. In **Grimshaw V Dunbar** 1 Q.B 408 at 416, Jenkins L.J said,



“...a party to an action is prima facie entitled to have it heard in his presence; he is entitled to dispute his opponent’s case and cross-examine his opponent’s witnesses and his own evidence before court. ...that a litigant who is by mischance or accidentally absent the common justice demands that he/she should be allowed to come to the court and present his case.” Generally it means that no body shall be penalised by a decision of an administrative authority or tribunal unless he / she has been given fair opportunity to answer the case against him / her and to put his / her own case. In **Annebrit Aslund Vs Attorney General HC Miscellaneous cause No. 441 of 2004**, the applicant who was an employee of URA appeared and testified before the commission of inquiry into allegations of corruption in U.R.A over which lady justice sebutinde had made a report and submitted to the Minister of finance and economic development. The application for judicial review was brought under section 3 of the Judicature (Amendment) Act No. 3 of 2002. The applicant claimed that the lady justice made baseless, biased and false findings that the applicant was incompetent to head a big financial institution like U.R.A and prayed court to grant a declaration that the sebutinde report is a nullity, an order of certiorari removing the report into the High court in order to quash it and expunge it from archives of public records and an injunction prohibiting any officer from taking action based on the report. At the hearing three points were raised by counsel for the respondents, that the High court was not clothed with jurisdiction to grant the orders sought, that the application was misconceived for want of locus. The **court held as follows,**

- That in this case the very fact that the commission of inquiry Act, Cap 166 states that in a few instances, summoning witnesses, the commission was to exercise the powers of the High Court, shows that in other aspects the Commission could not be equated to the High Court even when presided over by a High court judge. A tribunal appointed under the commission of inquiry Act, is an inferior Court within the meaning of rule 1 (2) Order XLII A of the

Civil Procedure Rules and subject to the control of the High court through such writs as mandamus, certiorari and prohibition.

- Held that a cause of action is the fact or combination of facts that give rise to the right of action. The operational words of section 3 of the Judicature (Amendment) Act No. 3 of 2003 are 'any proceedings or matter' which terms are wide enough to include proceedings and report of the commission of inquiry. They do not restrict the cause of action to a final enforceable decision, therefore a remedy for judicial review is concerned



not with the decision of which review is sought but with the decision making process. In this case, the application does not confine itself to the relief of certiorari but also seeks a declaration and an injunction.

- Held that *locus standi* refers to the right to be heard in court or other proceedings. The applicant was granted leave to apply for review. Under Order XLIIA of the Civil Procedure Rules, the court is not to grant leave unless it considers that the applicant has sufficient interest in the matter to which the application relates.
- Held that in the instant case there had been breach of the rules of Natural justice and procedure.

Further, in **Ridge Vs Baldwin (1964) AC 40** the plaintiff had (chief constable of Brighton) had been prosecuted and acquitted on charges of conspiracy to obstruct the course of justice. The Brighton watch committee which was responsible for enforcing discipline in the police force purported to dismissed the plaintiff from his post, without giving him any prior notice or hearing and applied to court contending that his dismissal was invalid. Court held that the decision was void due to breach of the principles of natural justice. **Lord Reid** stated that ‘...the principle of audi alteram partem goes back many centuries in our law...an officer cannot lawfully be dismissed without first telling him what is alleged against him and hearing his defense or explanation.’

NB. Importance of the above case

- The significance of Ridge V Baldwin is that it helped to free both the substantive rules of natural justice from strict limitations which had been imposed in earlier decisions, in particular from the requirement that the decision-making body must be under a duty to act judicially and also the remedy of certiorari. The decision in the case may be compared with that in

Nakkuda Ali V Jayaratne [1951] AC 66 (in this case the privy council had held that the controller of textiles in Ceylon had no duty to act judicially in exercising his power to revoke licences to deal in textiles, this was because at that time, certiorari could only lie against agencies which were under a duty to act judicially), which was disapproved in *Ridge V Baldwin*. The House of Lords made it clear that this duty to ‘act judicially’ arose directly from the power of



an agency to 'determine questions affecting the rights of subjects', i.e. the potential effect of the exercise of the power on the citizen's interests, generates both audi alteram partem obligation and also the applicability of certiorari.

- The application of the rules of natural justice to cases involving dismissal from employment has been extended since Ridge V Baldwin and has now become a rule of general application.
- The requirements of a fair hearing depend on all circumstances. They include; a right to notice, but restrictions may be placed where public interest so requires, the right to legal representation or make representations, whether in writing or orally and where an oral hearing is held, the right to comment on any evidence presented, where evidence is given orally by witnesses, the right to put questions to those witnesses.

In **Cooper Vs The Wandsworth port of works (1863)**, the port of Worth demolished the plaintiff's house without giving him prior notice or an opportunity to make representations on his own behalf. The plaintiff's action succeeded and he obtained damages for trespass. The court emphasised that even where the statute applicable, doesn't specifically provide for notice or for an opportunity to be heard a public authority is under a duty to apply the rule of natural justice.

Contents of a right to a fair hearing

1. Notice must be given in adequate terms so that the prospective victim knows the essence of the case he has to meet and can prepare his answer properly. In **Desouza Vs Tanga Town council, court held** that notice should include the substance of the allegations of the charge and it must specify the time and place where the hearing is to take place.

A similar issue arose in Patel Vs Plateau Licensing

2. The parties must be given the opportunity to adequately present their case. This includes the right to have the matter adjourned if injustice would otherwise. In **Kanda Surinder Singh Vs Government of Malaysia (1962)** , Lord Denning stated “if the right to be heard is to be real right which is worth anything, it must carry with it a right in the accused man to know the case which is made against him. He must know what evidence has been given and what statements have been made affecting him and then he must be given a fair opportunity to correct or contradict them.” See also *In Re M an infant* (1968) 1 WLR 1189.



3. The administrative authority has a duty to afford an oral hearing but in some cases representations may be made in writing. In **Chief Constable of the North Wales Police V Evans** [1982] 1 WLR 1155 HL, the Chief constable of North Wales decided that Evans, a probationer constable in the force, should be required to resign or, if he refused, be discharged from the force. Evans resigned but subsequently challenged the decision on the ground that it was taken in breach of natural justice because he was not given an opportunity to offer any explanation. The House of Lords agreed with the decision of Court of Appeal that there had been a breach of natural justice, but in the light of comments made in the Court of Appeal, felt it necessary to make some comments on the scope of judicial review.

R Vs Local government Board Exparte Arlidge (1914) 1 KB 160
R Vs Immigration tribunal Exparte Mehmed (1977) 1 WLR 795

4. It also includes allowing all witnesses to be called to their respective parties and giving each party to cross examine each party's witness. In **Ceylon University Vs Fernando** (1960) 1 WLR 223, Supreme Court held that failure to afford audience or allow witnesses to be questioned / cross examined breached the principles of natural justice and therefore the report of the chancellor was null and void.

In **Dent V Kiambu Liquor licensing Court** [1968] EA 80, while noting that licensing courts were not mere executive bodies but courts from which an appeal would lie to the High Court and must be conducted in a manner appropriate to judicial tribunals, held that this requires that there is a requirement of production of proof of any matter referred to in evidence on oath or affirmation upon which the opposing party may put questions in cross-examination.

In **R V Board of Visitors of Hull Prison, ex parte St Germain** [1979] 1 WLR 1401, in this case, following a riot in Hull prison in 1976, numerous charges of breaches of the prison rules were heard by the prison's board of visitors. During the hearing, reference was made to a number of statements by prison officers, who were not available to give evidence, to support the evidence given by a witness. Seven of the prisoners who were found guilty of the offences



against prison discipline sought an order of *certiorari* on grounds that the proceedings before the board of visitors breached the rules of natural justice, to wit, that hearsay evidence was taken into account. While acknowledging that it is common ground that the board of visitors should base its decisions on evidence, the issue that arose was such evidence was restricted to that which was admissible in a criminal court of law? **Geoffrey Lane LJ** held that there was no restriction. (This view was also expressed by the Privy Council in *Ceylon University V Fernando* [1960] 1WLR 223 at 234). The lord justice stated that, it is the entitlement of the board to admit hearsay evidence is subject to the overriding obligation to provide the accused with a fair hearing. That depending upon the particular facts of a case and the nature of the hearsay evidence provided to the board, the obligation to give the accused a fair chance to exculpate himself, or a fair opportunity to controvert the charge or a proper or full opportunity of presenting his case and may oblige the board not only to inform the accused of the hearsay evidence but also to give the accused a sufficient opportunity to deal with that evidence. Further, that depending on the nature of the evidence and the particular circumstances of the case, a sufficient opportunity to deal with the hearsay evidence may well involve cross-examination of the witnesses whose evidence is initially before the board in the form of hearsay. Accordingly, court quashed the findings of guilt based on hearsay evidence by the order of *certiorari*.

5. Means that all relevant information from whatever source it may come should be disclosed to a person who may be prejudiced by its concealment. However, does the kind of evidence admissible have any limits? In **R Vs Deputy industrial injuries commissioner Exparte Moore** (1965) 1 QB 456, at 488 **Diplock LJ** stated that, 'technical rules of evidence, however, form no part of the rules of natural justice. The requirement that a person exercising quasi-judicial functions must base his decision on evidence means no more than it must be based upon material which tends logically to show the likelihood or unlikelihood of the occurrence of some future event the

occurrence of which would be relevant. It means that he must not spin a coin or consult an astrologer, but he may take into account any material which, as a matter of reason, has some probative value in the sense mentioned above, the weight to be attached to it is a matter for the person to whom parliament has entrusted responsibility of deciding the issue.



In **R V Army Board of the Defence Council, ex parte Anderson** [1991] 3 W.L.R 42, in this case the applicant was a former soldier who alleged that he had been subjected to forms of racial abuse which caused him to go absent without leave. The papers relating to the complaint were seen separately by two members of the army board who reached individual conclusions that, although there was some truth in the applicant's claim, there was no basis for making an apology to him or awarding him compensation. The applicant's request for disclosure of documents relating to investigations into his complaint was refused, as was his request for an oral hearing. He applied for judicial review. **Taylor LJ.** Stated that a body required to consider and adjudicate upon an alleged breach of statutory rights and to grant redress when necessary seems to be exercising an essentially judicial function and as such is required to follow the rules of natural justice. While refuting the submission of defendant's counsel that the Army board's duty of fairness required no more than that it should act bona fide, not capriciously or in a biased manner, and that it should afford the complainant a chance to respond to the basic points put against him, noted that the Army board was bound by its procedures achieve a high standard of fairness more than it had asserted. The **Lord Justice** laid down the principles as follows;

- There must be a proper hearing of the complaint in the sense that the board must consider a single adjudicating body, all the relevant evidence and contentions before reaching its decisions. That it is unsatisfactory that the members should consider the papers and reach their individual conclusions in isolation and, perhaps as here, having received the concluded views of another member.
- That a hearing does not necessarily have to be an oral hearing in all cases. There is ample authority that decision-making bodies other than courts and bodies whose procedures are laid down by statute are masters of their own procedure. Provided that they achieve the degree of fairness

appropriate to their task it is for them to decide how they will proceed and there is no rule that fairness always requires an oral hearing.(re-stated in Local Government V Arlidge [1915] AC 120 at 132-133 and Selvarajan V Race Relations Board [1975] 1 WLR 1686 at 1694). That whether an oral hearing is necessary will depend upon the subject matter and circumstances of the particular case and upon the nature of the decision to be made. That it will also depend upon whether there are substantial issues of fact which cannot be



satisfactorily resolved on the available written evidence. That this does not mean that, whenever there is a conflict of evidence in the statements taken, an oral hearing must be held to resolve it.

- The opportunity to have evidence tested by cross-examination is to be observed. But in this case, it was within the discretion of the army. The discretion whether to allow it will usually be inseparable from the decision whether to have an oral hearing. That the object of the latter will be to enable witnesses to be tested in cross-examination, although it would be possible to have an oral hearing simply to hear submissions.
- That whether oral or not, there must be what amounts to a hearing of any complaint. That in this case it meant the Army board had to give such a complaint investigated, consider all the material gathered, give the complainant an opportunity to respond to it and consider his response. However an issue arose as to what was the obliged to disclose to the complainant to obtain his response? That was it sufficient to indicate the gist of the any material adverse to his case or should he be shown all the material seen by the board? The Lord Justice held that the complainant should be shown all the material seen by the board, apart from any documents for which public interest immunity can be properly claimed. The board was not making an administrative decision requiring it to consult interested parties and hear their representations. It had the duty to adjudicate on a specific complaint of breach of a statutory right. Except where public interest immunity is established, there is no reason why on such adjudication the board should consider all material withheld from the complainant. In this case, the complainant was only shown part of the materials and court held that this hampered his response due to lack of full information and thus breached rules of natural justice.

6. Right to legal representation

- Pett Vs Greyhound Racing Association Ltd (1970) 1 KB 46

In **Enderby Town Football Club Ltd Vs The Football Association Ltd** (1970) 3 WLR 1021, Court held that denial of legal representation is not necessarily breach of natural justice. **Lord Denning MR.** at 607 stated thus, 'Seeing that courts can inquire into the validity of the rule, the



question is; is it lawful for the body to stipulate in its rules that its domestic tribunal shall not permit legal representation? Such a stipulation is, I think, clearly valid so long as it is construed as directory and not imperative: for that leaves it open to the tribunal to permit legal representation in an exceptional case when the justice of the case so requires. But I have some doubt whether it is legitimate to make a rule which is so imperative in its terms as to exclude legal representation altogether, without giving the tribunal discretion to admit it, even when the justice of the case so requires.'

Regarding the legal representation the reviewing court will normally establish procedure, the practice adopted by the tribunal or authority whose decision is reviewed. Thus, where it has been allowing legal representation, it should do so for every body but where it has not been doing so, the denial won't amount to breach of natural justice.

7. Although not established by any legal authority, it has been recommended that a right to a fair hearing includes disclosure of the relevant information to the party that would be affected by the decision. (per Wade; 6th edition; pages 547-50).

R Vs Industrial injuries commissioner .Exparte Moore (1965) 1 QB 456

In **Ridge Vs Baldwin**, Lord Reid stated that before attempting to reach any decision, they should inform the person of the grounds upon which they propose to act and give him an opportunity of being heard in his own defense.

In **Byrne Vs Kinematograph Reuters Society** [1958]1 W.L.R 762, Harman J stated requirements of natural justice as a person accused should know the nature of the accusation made and should be given opportunity to state his case and that the tribunal should act in good faith.

Suffice to note that there is no strict specific procedure laid down to be followed under natural justice while carrying out administrative duties and functions, but the requirements of fairness depend on the facts of each case. The question that arises is, what then, are the criteria by which to decide the requirements of fairness in any proceeding? Authoritative guidance as to this was



given by *Lord Bridge* in **Lloyd V McMahon** [1987] AC 625 at 702, where he said, ‘...the rules of natural justice are not engraved on tablets of stone. What the requirements of fairness demand when any body, domestic, administrative or judicial, has to make a decision which will affect the rights of individuals depends on the character of the decision making body, the kind of decision it has to make and the statutory or other framework in which it operates. In particular, it is well established that when a statute has conferred on any body the power to make decisions affecting individuals, the courts will not only require the procedure prescribed by the statute to be followed, but will readily imply so much and no more to be introduced by way of additional procedural safeguards as will ensure the attainment of fairness.’

Circumstances under which the right to a fair hearing may be excluded

The right to a fair hearing is not absolute in administrative proceedings and may be excluded in the following cases;

1. Where factors such as urgency come into play e.g. urgent action may be needed to safeguard public health/ safety in the case of **White Vs Redfern** (1879) 5 QB 15. The right to a fair hearing was excluded where there was a need to protect public health and destroy bad food that was exposed for sale.

2. It may be excluded where considerations of national security must be taken into account. This should be considered in light of Article 43 of the Constitution. It provides inter alia that, in the enjoyment of the rights and freedoms prescribed in the constitution, ‘no person shall prejudice the fundamental or other human rights and freedoms of others or the public interest. It states further that public interest under this article shall not permit political persecution; detention without trial and that any limitation of the enjoyment of the rights and freedoms prescribed by this Chapter beyond what is acceptable and demonstrably justifiable in a free and democratic

society, or what is provided in this Constitution.

In **Council of Civil Service Unions Vs Minister for the Civil Service** (1985) AC 374, the facts of this case were as follows; the Government communications headquarters(GCHQ), a branch of the civil service responsible for the security of the UK military and official communications and



the provision of signals intelligence for the government. Since its formation all the staff had been permitted to belong to trade unions. There was an established practice of consultation between the management and the civil service unions at GCHQ. Following incidents of industrial action at GCHQ the Minister for civil service, the Prime Minister, issued an oral instruction to the effect that the terms and conditions of civil servants at the GCHQ should be revised to exclude membership of any trade union other than a departmental staff association approved by the Minister. The union applied for judicial review, seeking a declaration that the Minister had acted unfairly in removing their fundamental right to belong to a trade union without consultation. The case was ruled in favour of the applicants and the Minister appealed to the Court of Appeal which allowed his appeal and the appellants appealed to the House of Lords.

Having held that the courts have power to review the exercise of a power delegated to the decision-maker under the royal prerogative, **Lord Fraser of Tullybelton** stated that, the respondent's case is that she deliberately made the decision without prior consultation because prior consultation 'would involve a real risk that it would occasion the very kind of disruption at GCHQ which was a threat to national security and which it was intended to avoid.' That the 'question is one of evidence. The decision on whether the requirements of national security outweigh the duty of fairness in a particular case is for the Government and not for courts; the Government alone has access to the necessary information, and in any event the judicial process is unsuitable for reaching decisions on national security. But if the decision is successfully challenged, on ground that it has been reached by a process which is unfair, then the Government is under an obligation to produce evidence that the decision was in fact based on national security.'" The lordship concluded that in this particular case the respondent had shown that her decision was one which not only could reasonably have been based, but was in fact based, on considerations of national security, which outweighed what would otherwise have been the reasonable

expectation on that on the part of the appellants for prior consultation.’

In **R V Secretary of state for the Home Department, exp Hosenball [1977] 3 ALLER 452**, the considerations of national security were held to limit very substantially the obligations of *audi alteram partem*. In this case, Hosenball, a US citizen, challenged a deportation order that had been made against him by the Home secretary deeming his deportation to be conducive to the public good as being in the interests of national security. Hosenball challenged the voluntary



procedure as not conforming to natural justice. In particular Hosenball drew attention to the fact that he had not been given any detailed information as to the exact allegations against him, and that the security advisers had information before them from the intelligence service which they did not make available to him. Although he had been permitted to make representations, the value of the opportunity was rather limited because he did not know precisely the charges against him (something that audi alteram partem would have required). The Court of Appeal denied that there had been any breach of natural justice.

The Court contrasted the normal procedural rights afforded to persons against whom serious action was to be taken, with the more limited protection in a case such as this. As **Lord Denning MR said in the above case**; ‘...this is no ordinary case. It is a case in which national security is involved, and our history shows that, when the security of the state is endangered, our cherished freedoms may have to take second place. Even natural justice may suffer a set-back....spies, subverters and saboteurs may be mingling among us, putting on most innocent exterior. They may be endangering the lives of men in our secret service, as Mr. Hosenball is said to do...If they are foreigners they can be deported.’

3. Where an employer summarily dismisses an employee the right of a fair hearing is excluded unless contractual or statutory procedural duties are cast on the employer, the court can only grant an employee damages for breach of contract if the dismissal is wrongful but can not declare the decision to dismiss null and void.

Mallock Vs Aberdeen Corporation (1971) 1 WLR

1578 Musisi Vs Greenlays Bank.

NB. Bearing in mind Art 44; it is not consistent with the constitution, this is done for administrative expediency.

Effects of failure to observe natural justice

The effect is that a decision given in disregard of the principles of natural justice is void. It may lead to the quashing of the decision and damages may ensue from such proceedings. In **Kaggwa V Minister of Internal Affairs**, HC Miscellaneous application No. 105 of 2002, the Minister's decision was quashed because the applicant had not been granted a fair hearing. In **Annebrit**



Aslund V A.G, HC miscellaneous cause No. 441 of 2004, Katutsi J quashed the URA report because it flouted principles of natural justice.

THE RULE AGAINST BIAS

The second part of the principle of natural justice is derived from the Latin maxim "*nemo judex in causa sua*" meaning no one can be the judge in his own cause. This gives rise to a duty to act fairly, to listen to arguments, and to reach a decision in a manner that is untainted by bias. There can never be a fair trial where the adjudicator has an interest in a case or matter. There are 2 aspects to the rule against bias;

1. That the adjudicator must not have any direct financial or proprietary interest in the outcome of the proceedings.
2. An adjudicator must not be reasonably suspected or show a real likelihood of bias.

Financial or pecuniary interest

No matter how small the adjudicator's pecuniary interest may be or no matter how unlikely it is to affect his judgement, he is disqualified from taking part in making a decision. Any decision made in such circumstances will be set aside. In **Leeson V General Council of Medical Education (1889) 43 Ch.D 336**, court stated thus, '...a person who has judicial duty to perform disqualifies himself from performing it if he has a pecuniary interest in the decision which he is about to give or a bias which renders him otherwise than an impartial judge. If he has a pecuniary interest in the

success of the accusation he must not be a judge.’

The same principle applies when the pecuniary interest is that of the adjudicator’s wife or other close relatives. Likewise the adjudicating officer should disqualify himself from the proceedings



if he has any substantial pecuniary relation with a party, even if that relation is not directly at issue in the case. Of course this principle cannot be carried to its logical extreme, otherwise all adjudicators would withdraw from all matters. But in general an adjudicating officer should be very wary of participating in a case where his pecuniary relations with a party might appear to affect his decision.

In **Dimes Vs Proprietors of Grand Junction Canal proprietors (1852) 3 HLC 759**, a decree made by the Lord Chancellor was set aside because he was holder of shares in the company which was a party to the proceedings. The brief facts were as follows. Lord Cottenham was Lord Chancellor of England and held 92 shares in a company called G.J. Canal worth thousands of pounds. There was a dispute between a man called Davies and the company. The company applied for an injunction restraining Mr. Davies' conduct in putting a bar across the canal, which he claimed to be his property. The application was granted and there was an appeal to Lord Cottenham as Lord Chancellor, the decision was affirmed, Mr. Davies losing his appeal. Lord Cottenham had not disclosed that he was a shareholder of the company. It was held by the House of Lords that the Lord Chancellor was disqualified from acting as a judge in the cause on ground of interest and the decree was set aside. **L.C.J., Lord Campbell** said, "No one can support that Lord Cottenham could be, in the remotest degree influenced by the interest that he had in this concern; but it is of the last importance that the maxim that no man is to be a judge in his own cause in which his own cause should be heard is sacred. And that is not to be confined to a cause in which he is a party, but applies to a cause in which he or she has an interest.We have again and again set aside proceedings in inferior tribunals because an individual, who had an interest in a cause, took part in the decision. And it will have a most salutary influence on these tribunals when it is known that this high court of last resort, in a case in which the lord chancellor of England had an interest, considered that this decree was on that account a decree not according to law, and was set aside.

'This will be a lesson to all inferior tribunals to take care not only that in their decrees they are not influenced by their personal interest but to avoid the appearance of labouring under such an influence.'

Non pecuniary interests



In some cases there may exist some kind of relationships between the adjudicator and one of the parties that might lead to a biased decision. The test to be applied are ;

1. Is there a real likelihood of bias?

2. Is there a reasonable suspicion of bias?

NB. There is no need to prove actual bias. Examples of cases where a likelihood of bias led to the decision being set aside are hereunder discussed. The locus cluscus on the subject of bias is the case of **Libyan Arab (U) Bank & another V Adani Vassilads CACA No. 9 of 1985**, Odoki JA (as he then was quoted article 126 of the Constitution, then 15 (9))and stated that the provision lays down the requirements for a fair trial, that court must be independent and impartial. He held that bias may be established against a person sitting in a judicial capacity on one of the two grounds;

(a) direct pecuniary interest in the subject matter,

(b) bias in favour of one side against the other. That bias means a real likelihood of an operative prejudice whether conscious or not. That in considering the possibility of bias it is not the mind of the judge which is considered but the impression given to reasonable persons. **Justice Odoki, JA (as he then was)**, stated that, ‘there must be reasonable evidence to satisfy the court that there was a real likelihood of bias.

Objection cannot be taken at everything that might raise a suspicion in somebody’s mind or anything which could make fools suspect. There must be something in the nature of real bias, for instance evidence of proprietary interest in the subject matter before court or a likelihood of bias based on close association with one of the parties as was the case in **Tuman V R.**’ His lordship held that in this case ‘there is no reasonable evidence to satisfy me that there was a real likelihood of bias on the part of the learned trial judge. There was no evidence or even suspicion that he had a direct pecuniary interest in the subject matter of the suit. There was no evidence that he was likely to favour the respondent against the appellant; and even if the trial judge may

have been thought to have formed some opinion before hand on the case, it is not enough to establish bias. The allegation of bias was a mere conjecture.’ That the appellants should have raised a preliminary objection the trial and even if it were overruled, he should as the trial judge remarked in his judgement have continued with the hearing and made it a ground of appeal. The appellants abandoned the hearing because they suspected that the trial



judge had prejudged the case against them before hand. That the burden of proof lies on the party refusing to continue trial to satisfy court of appeal that he was justified in his apprehension that it would be futile for him to continue and that had he done so he would not have had a fair hearing.

In **Brassington V Brassington** [194] 3 ALLER 988 at 990, **Holroyd Pearson L.J** stated thus, 'Before considering the effect of the remarks of which a complaint is made, we must observe that only a very strong case indeed could justify a refusal by a party to continue to take part in the trial. If a party though aggrieved, continues to present his evidence and arguments he can always reserve his complaint and appeal against the unfair decision when it has been given. And any remarks which show that the tribunal prejudged the case against him before he had called his evidence will always in this court add very great weight to the substance of the appeal and may in themselves constitute a sufficient ground of appeal. The aggrieved party will then atleast have shown that he has a genuine case on which he either ought to have or could have succeeded.

In **Metropolitan Properties Co. F.G.C Ltd V Lannon** (199)1Q.B 41, **Lord Denning** stated that, 'in considering whether there was a real likelihood of bias, the court does not look at the mind of the justice himself or at the mind of the chairman of a tribunal or whoever it may be who sits in a judicial capacity. It does not look to see if there was a real likelihood that he would or did, in fact favour one side at the expense of the other. The court looks at the impression which would be given to other people. Even if he was impartial as could be, nevertheless if right minded persons would think that in the circumstances there was a real likelihood of bias on his part, then he should not sit and if he does sit, his decision cannot stand. Nevertheless there must appear to be a real likelihood of bias. There must be circumstances from which a reasonable man would think it likely or probable that the

justice or chairman as the case may be would or did favour one side unfairly. The court will not inquire whether he did in fact favour one side unfairly. Suffice it that reasonable people might think he did. The reason is plain enough. Justice must be rooted in the confidence and confidence is destroyed when right minded people go away thinking the judge was biased.’

In **Patel V Joshi** [1952]19 EACA 42, Court of Appeal held that a judge should not descend into the area where his vision may be clouded by dust of conflict, but an appellate court will refuse a



retrial unless it is convinced that the vision of the judge had become so clouded-excessive intervention.

An example of actual bias is to be found in the **Uganda Judicial Code of Conduct (2003)**, principle 2.4 provides that a judicial officer shall refrain from participating in any proceedings in which the impartiality of the judicial officer might be reasonably questioned. It states further that without limiting the generality of the foregoing a judicial officer shall disqualify himself from participating in any proceeding where he has personal knowledge of the disputed facts concerning the proceedings or where a member of the judicial officer's family is representing a litigant, is a party, or has an interest in the out come of the matter in controversy, in the proceedings. In **R V Rand** (1966) L.R 1 Q.B. 230, the judge stated that, 'wherever there is a real likelihood that a judge would, from kindred or any other cause, have a bias in favour of one of the parties, it would be very strong for him to act.'

In relation to disqualifying oneself as a result of the probable bias, it was stated in **Leeson V General Council of Medical Education**, (1889) 43 Ch.D. 366, that '...a person who has judicial duty to perform disqualifies himself from performing it if he or she has a pecuniary interest in the decision that he or she is an=about to give or a bias that renders him otherwise than an impartial judge. If she or he has a pecuniary interest in the success of the accusation he or she must not be a judge.'

NB. This equally applies where a judicial officer or chairperson of a tribunal has any pecuniary relation with a party, even if that relation is not directly at issue in the case. Note that mere suspicions should not outweigh and influence the justice of the case, otherwise the essence of the rule against bias will be lost. As was noted in the Australian case of **Re JRL, exparte CJL**, (1986) 161 CLR 342 at 352 **Mason J**, sitting in the High Court of Australia, said, 'Although it is important that justice must be

seen to be done, it is equally important that judicial officers discharge their duty to sit and do not, by acceding too readily to suggestions of appearance of bias, encourage parties to believe that by seeking the disqualification of a judge, they will have their case tried by someone thought to be more likely to decide the case in their favour.’ This is fortified by the **Clenae case** [1999] VSCA 35 **Callaway JA** observed thus, ‘As a



general rule, it is the duty of a judicial officer to hear and determine the cases allocated to him or her head of jurisdiction. Subject to certain limited exceptions, a judge or magistrate should not accede to an unfounded disqualification application.'

In addition, principle 5.1 of the Judicial Code of Conduct provides that a judicial officer shall not in the performance of judicial duties, by words or conduct manifest bias or prejudice towards any person or group on the basis of unjust discrimination.

The rationale for the apparent strictness of the rule is one of public policy. In **Serjeant V Dale** (1877)2Q.BD 558 at 567, court said, "The law in laying down this strict rule, has regard, not so much perhaps to the motives which might be supposed to bias the judge, as to the susceptibilities of the litigant parties. One important object, at all events is to clear away everything which might engender suspicion and distrust of the tribunal, and so to promote the feeling of confidence in the administration of justice which is so essential to social order and security." **Hence**, the dictum of Lord Heward C.J in **R V Essex JJ. Exparte McCarthy** (1924) 1 KB 256, '*Justice should not only be done, but be manifestly seen to be done.*' In that case, the police charged the applicant with dangerous driving. As is known, in England, justices of the peace sit with a qualified clerk. At the hearing, the acting clerk happened to be a member of the firm of solicitors who were acting for someone who was claiming damages from the applicant for personal injuries he received in the collision. The justices retired to consider their decision and the acting clerk went out of court with them, in case they wanted any guidance on the law. The applicant was convicted. An affidavit was sworn that the acting clerk was not in fact consulted. The conviction was quashed for, it was held to be improper for the clerk to be present with the justices when they were deliberating on their decision, when his firm's interest in the case was borne in mind. It was not necessary to establish bias in fact and the result would have been the same even if the clerk had not known that his firm was acting professionally.

The test for actual bias is subjective while the test for perceived bias is objective. Perceived bias refers to a situation where an impression could be created to a reasonable person that the judicial officer is not impartial. It is not the mind of the judge that is considered but rather the impression given to reasonable persons. See *Tumaini V Republic* [1972] EA44. In **Blasio Sengendo &**



another V Uganda [1994] IV KALRN 133, **Tsekooko J held** that inter alia that the inference of bias must be as to what a reasonable man would think given the set of circumstances. That if the reasonable man would think that the magistrate did favour one side unfairly at the expense of another, then bias is proved.

NB. Impartiality is a question of perception and there are three instances a judicial officer should be alive to;

(i) Perceived conflict of interest. (ii) Behaviour (inside and outside court). (iii) Associations and activities outside court. Conflict of interest arises where there is probability of advancing or promoting the personal or interest of others in a manner which compromises fairness and the entire judicial process. This has already been discussed in the preceding paragraphs.

1. Where the adjudicator was a member of an organisation that was a party to the proceedings.

In **Hannam Vs Bradford Corporation 1970) 1 WLR 937**, an education sub-committee had confirmed the decision by the governor of the school to terminate a teacher's employment. Held the decision was quashed by the court because of the fact that the 3 members of the sub-committee were also governors of the school gave rise to the possibility of bias.

2. Where extra-judicial pronouncements reveal that an adjudicator was partisan.

R Vs Halifax justices ex parte Robinson (1912) 76 JB 233 Ashumud Vs AG

3. Where there is personal friendship or hostility towards one of the parties.

In **White Vs Kuzych 1951) AC 585**, the respondent a member of the appellant trade union was found guilty on charges alleging breach of Art 2 of Bye laws of the union including committing acts discreditable to it in publicly opposing established policies

of the union by campaigning against the closed shop principle. He () was provided with an option of an appeal after exhausting all remedies from the findings in the report and the resolution of his expulsion that he had not been validly expelled from the membership. He claimed that the decision was biased and breached natural justice and even intimidation. Court **held** that the conclusion reached was a decision even if it was tainted with / by bias or prejudice or arrived at in defiance of natural



justice and even if the voting of some members might have been reached/ affected by intimidation.

In **R V Bow Street Metropolitan Stipendiary Magistrate, ex parte Pinochet Ugarte** [2000] 1 AC 119, **Lord Browne-Wilkinson** stated thus, “...the fundamental principle is that a man may not be a judge in his own cause. This principle as developed by courts has two very similar but not identical implications. First it may be applied literally; if a judge is in fact a party to the litigation or has financial or proprietary interest in its outcome then he is indeed sitting as a judge in his own cause. In that case, the mere fact that he is a party to the action or has a financial or proprietary interest in its outcome is sufficient to cause his automatic disqualification. The second application of the principle is where a judge is not a party to the suit and does not have a financial interest in its outcome, but in some other way his conduct or behaviour may give rise to a suspicion that he is not impartial, for example because of his friendship with a party....”

According to **De Smith, Woolf and Jowell, Judicial Review of Administrative Action, 5th edition (1995)** at p.525, once it is shown that the judge is himself a party to the cause, or has relevant interest in its subject matter, he is disqualified without any investigation into whether there was a likelihood or suspicion of bias. The mere fact of his interest is sufficient to disqualify him unless he has made sufficient disclosure.

4. Where a person is likely to be a witness in the proceedings, he can not be a judge.
Ndegwa Vs Nairobi liquor licensing court.

NB. The test of likelihood or reasonable suspicion of bias must be applied realistically.
In **Sikabuza Vs The Director of Survey**, the applicant's licence had been cancelled

by the survey licence board on grounds of professional misconduct, he appealed on the basis that the composition of the board did not meet the standards of natural justice. The composition of whom were surveyors and 3 other members, 2 of whom were surveyors. The applicant contended that the 2 surveyors on the board were his competitors in the business and were therefore sitting in judgement of their own cause. Court held that the mere fact that an interested party sits on the



disciplinary body, which applies professional standards does not necessarily conflict with the maxim that no man be judged in his own cause.

Similar reasoning was applied in the case. **Re-s- a barrister (1981) QB 683**, where **court** held that a solicitor could adjudicate in a matter brought by the council of the law society.

The need to apply the test realistically also means that political affiliations of the adjudicators are usually not taken into account.

Where it is found that there is a real likelihood or a reasonable suspicion of bias, the adjudicator is disqualified from presiding over the matter. The rationale for such disqualification is based on the principle that public confidence in the administration of justice must not be impropriety. The rule looks to the appearance of the matter to an outsider.

According to the case of **R Vs Sussex Justices Exparte McCarthy (1924) 1 KB 256**, the issue of appearance of the matter to an outsider is not that would a member of the public looking on the situation as a whole reasonably suspect that a member of the adjudicating body would be biased. The court must ask itself whether a reasonable person viewing the facts would think that there is a substantial possibility of bias therefore the question is not whether the judge is likely to be biased but whether he is likely to be seen as biased.

Consider this hypothetical case and answer the question: The adjudicator applies for a job with an organisation one of whose members is going to be called as an expert witness by one of the parties to the proceedings. Would the adjudicator be disqualified for bias?

The answer is to be found in **Re- medicaments and related classes of goods (2001) 1 WLR 700**, this was a matter relating to the prices of certain medicines before the restrictive practices court of England. An administrative tribunal with the membership consisting of a high court judge and lay people who were also experts in accountancy and economics was constituted. During the hearing one of the members of the tribunal, a doctor(R) approached an economic consultancy firm to ask if they would consider employing her. She later realised that one of the directors of the firm a Mr. B was an expert witness on behalf of the applicant in the case. She



said she had forgotten this at the time of making the application; she consulted the presiding judge and other members of the tribunal and sent a statement to both parties advising them of the situation. In the statement, she said that because of her involvement in the case as a member of the tribunal and Mr. B's involvement as an expert witness her application for the vacancy could not be pursued until the conclusion of the case. Never the less, the respondent appealed on grounds that there was a reasonable suspicion of bias. The **H.O.L** held that in applying the test for bias, it would in deed appear to an ordinary person that there was a likelihood of bias and that on those grounds doctor R should have disqualified herself from presiding over the matter.

Lord Phxillips, MR. in the above case stated that the test is the reasonable apprehension test and noted that it is by far the most appropriate test for protecting the appearance of impartiality. Lord Phillips distinguished the test of real likelihood and reasonable apprehension/suspicion and preferred the latter. He stated that, ‘...the premise on which the decisions in this court are based is that public confidence in the administration of justice is more likely to be maintained if the court adopts a test that reflects a reaction of the ordinary reasonable member of the public to the irregularity in question. References to the reasonable apprehension of the lay observer, the fair minded observer, the fair-minded, informed lay observer, fair-minded people, the reasonable or fair-minded observer, the parties or pubic, and the reasonable person abound in the decisions of the court. They indicate that it is the court’s view of the public view, not the court’s own view, which is determinative. If public confidence in the administration of justice is to be maintained, the approach that is taken by a fair-minded and informed members of the public cannot be ignored.

His lordship concluded that ‘...the court must first ascertain all the circumstances which have a bearing on the suggestion that the judge was biased. It must then ask

whether those circumstances would lead a fair-minded and informed observer to conclude that there was a real possibility, or real danger, the two being the same, that the tribunal was biased. The material circumstances will include the explanation given by the judge under review as to his knowledge or appreciation of those circumstances. Where that explanation is accepted by the applicant for review it can be treated as accurate. Where it is not accepted, it becomes one further matter to be considered from the viewpoint of the fair-minded observer. The court does not have to rule



whether the explanation should be accepted or rejected. Rather it has to decide whether or not the fair-minded observer would consider that there was a real danger of bias notwithstanding the explanation advanced.’

NB. Sometimes it is proposed that the question upon which the court must reach its own factual conclusion is this, is there a real danger of injustice having occurred as a result of bias? By ‘real’ is meant not without substance. A real danger clearly involves more than a minimal risk, less than a probability. It is submitted that injustice will occur as a result of bias if the decision-maker unfairly regarded with disfavour the case of a party to the issue under consideration by him. I would take ‘unfairly regarded with disfavour’ here to mean ‘was pre-disposed or prejudiced against one party’s case for reasons unconnected with the merits of the issue.’ It should be noted that this kind of approach was criticised in the **Re Medicaments** case above. Court noted therein that it is the hypothetical rather than the actual test of the likelihood of bias to be applied.

TOPIC

REMEDIES IN ADMINISTRATIVE LAW

Art 42 of the 1995 constitution provides that any person shall have the right to apply to a court of law in respect of any administrative decision taken against him/ her. In addition to the courts of law; there are other institutions and procedures a person may resort to if aggrieved by an administrative decision. Accordingly, administrative remedies may be classified into 2;

1. Judicial remedies.

2. Non- judicial remedies.

JUDICIAL REMEDIES

This refers to remedies that an aggrieved party may obtain from a court of law, in most cases the high court. Section 33 of the Judicature Act Cap (13), provides that the High Court shall, in the exercise of the jurisdiction vested in it by the Constitution, this Act or any written law, grant



absolutely or on such terms and conditions as it thinks just, all such remedies as any of the parties to a cause or matter is entitled to in respect of any legal or equitable claim properly brought before it, so that as far as possible all matters in controversy between the parties may be completely and finally determined and all multiplicities of legal proceedings concerning any of those matters avoided. Judicial remedies may be further classified as;

1. Appeals.

From most statutory tribunals appeals lie to the high court e.g. from the tax appeals tribunal and the industrial courts, a person may appeal to the high court.

2. Prerogative orders.

These are special administrative law remedies that were specifically designed to enforce governmental duties and powers.

3. Equitable remedies i.e. injunctions and declarations.

4. Ordinary remedies i.e. damages.

PREROGATIVE ORDERS

These are because originally under England law they were available only to the crown and not to the subject. The crown used them to ensure that public authority carried out their duties and so their main purpose was to ensure efficiency and maintain order in statutory authorities and tribunals of all kinds. Later around the 16th century, they become available to ordinary England citizens also seeking to enforce public duties. There are 3 examples of prerogative orders i.e. certiorari, prohibition and mandamus. These are all under judicial review. They are discretionary remedies and may be granted or refused at courts discretion. These remedies have been provided for under section 34 of the Judicature Act and the Judicature Amendment Act, No. 3 of 2002.

In **Chief Constable of the North Wales Police V Evans [1982] 1 WLR 1155 HL**, Lord Hailsham stated that the remedy of judicial review is intended to protect the individual against the abuse of power by a wide range of authorities, judicial, quasi-judicial, and administrative powers. That it is not intended to take away from those authorities the powers properly vested in



them by law and to substitute the courts as the bodies making the decisions. It is intended to see that the relevant authorities use their powers in a proper manner. That the purpose of the remedies is to ensure that the individual is given fair treatment by the authority to which he has been subjected. That the function of court is to see the lawful authority is not abused by unfair treatment and not to attempt itself the task entrusted to that authority by law.

CERTIORARI AND PROHIBITIONS

There are complimentary remedies based on common law, certiorari issues to quash a decision which is ultra-vires due to breach of natural justice or other defects in the procedure that was followed by an administrative authority. Under certiorari, the High Court will call up the decision of an inferior tribunal/ authority in order that it may be investigated. If it is found that the decision was made in breach of natural justice or some other procedural defect, it is quashed

i.e. it is declared completely invalid so that no one need to respect it once made an order of certiorari is final. The scope of certiorari was discussed in **R V Electricity Commissioners, Exp London Electricity Joint Committee Co** (1920) Ltd [1924] 1 KB 171 at 204, where Atkin J stated that, ‘...both writs of prohibition and certiorari are of great antiquity, forming part of the process by which King’s Courts restrained courts of inferior jurisdiction from exceeding their powers. Prohibition restrains a tribunal from proceeding further in excess of jurisdiction; certiorari requires the record or order of the court to be sent to the higher court (King’s Court) to have its legality inquired into, and if necessary, to have the order quashed. It is to be noted that both writs deal with questions of excessive jurisdiction; and doubtless in their origin dealt almost exclusively with the jurisdiction of what is described in the ordinary parlance as a court of justice. ...Whenever any body of persons having legal authority to determine questions affecting the rights of subjects, and having the duty to act judicially, act in excess of their legal authority they are to subject to the

controlling jurisdiction of the King's Court (this is the same as Uganda's High Court empowered to grant remedies of certiorari and prohibition." It should be noted that the these remedies can be invoked by a person

However, an application for such an order must be made within 6 months of the proceedings in respect of which it is made.(6 months after the decision)



Grounds on which a certiorari application may be made;

1. Breach of rules of natural justice.

It should be noted that the principle of natural justice has been embedded in the 1995 Constitution of the Republic of Uganda and other laws and its one of the non derogable rights. Art. 42 of the 1995 Constitution provides that any person appearing before any as administrative official or body has a right to be treated justly and fairly and shall have a right to apply to a court of law in respect of any administrative decision taken against him / her. This is because Art 28 of the 1995 Constitution provides for a right to a fair hearing which is absolute. It provides that in the determination of civil rights and any obligation, or in criminal matter a person shall be given a fair, speedy and fair hearing before an independent tribunal established by law. Accordingly, Article 44 of the Constitution provides inter alia that notwithstanding anything in the Constitution, there shall be no derogation from the enjoyment of the right to fair hearing. The duty to act fairly represents the standard of procedural administrative justice with which they will require compliance. In the words of, ‘...if one accepts that ‘natural justice’ is a flexible term which imposes **Megarry V-C in McInnes V Onslow Fane** different requirements in different cases, it is capable of applying to the whole range of situations indicated by the terms such as ‘judicial’, ‘quasi-judicial’ and administrative.’

In **John Bosco Oryem V Electoral Commission and UNEB**, Mukiibi J held that the Electoral Commission was a quasi judicial organ by virtue of section 15 (1) of the Electoral Commission Act and its functions are akin to a court or an arbitrator. His lordship observed that ‘if interests of an individual are going to be affected, he must be given a hearing. Where quasi judicial functions have to be exercised by a board or any body of persons, it is necessary and essential that they must always give a fair opportunity to those who are parties in the controversy to correct or contradict any relevant statements prejudicial to their case. Both sides have a right to be heard and a

decision in breach of the principles of natural justice is void.’ His lordship held that the respondent met to discuss the complaints which had been submitted against the petitioner without notifying him that such proceedings were taking place. That the respondent made a decision against the petitioner to disqualify him without informing him or inviting him to defend and as such the respondent acted contrary to natural justice in arriving at its decision. The decision shows how rules of natural justice have been applied in Uganda.



Accordingly, Section 36 of the Judicature Act empowers the High Court to make orders of mandamus, certiorari as well as prohibition. These remedies can be invoked in inter alia where there has been breach of natural justice and the procedure is provided in the Judicature (Amendment) Act. In **Cheborion Basharaki V Attorney General**, an application for certiorari, mandamus, prohibition and declaration was made by Cheborion. He sought a declaration that his interdiction was made contrary to the principles of natural justice. Katutsi J held that Regulation 36 of the public service regulations granted power to the solicitor to interdict and that there was no non observance of natural justice. Further in **Kikonda Butema Farms Ltd V Inspector General of Government**, this was an application that sought for certiorari to quash the decision of the IGG, Justice Apio Aweri stated that for an order of certiorari to be made, it must be shown inter alia the respondent acted in excess of his jurisdiction; that there was actual or threatened usurpation of jurisdiction or that there was breach of natural justice, or that an error of law on the face of the proceedings or where the determination was procured by fraud, collusion or perjury. That in this case the action of the IGG was justified as he had received a report that government was about to lose colossal sums of money under unclear circumstances, he made a report which was valid. That the IGG was acting within the confines of his (powers) jurisdiction, his decision was valid. That since none of the grounds listed above had been proved, it could not be issued.

The above can be contrasted with the decision in **Annebrit Aslund Vs Attorney General**, where Katutsi J quashed the URA report because it flouted principles of natural justice. In the applicant who was an employee of URA appeared and testified before the commission of inquiry into allegations of corruption in U.R.A over which lady justice sebutinde had made a report and submitted to the Minister of finance and economic development. The applicant claimed that the lady justice made baseless,

biased and false findings that the applicant was incompetent to head a big financial institution like U.R.A and prayed court to grant a declaration that the sebutinde report is a nullity, an order of certiorari removing the report into the High court in order to quash it and expunge it from archives of public records and an injunction prohibiting any officer from taking action based on the report. At the hearing three points were raised by counsel for the respondents, that the High court was not clothed with jurisdiction to grant the orders sought, that the application was misconceived for want of locus. The court held inter alia that in this case the



very fact that the commission of inquiry Act, Cap 166 states that in a few instances, summoning witnesses, the commission was to exercise the powers of the High Court, shows that in other aspects the Commission could not be equated to the High Court even when presided over by a High court judge. A tribunal appointed under the commission of inquiry Act, is an inferior Court within the meaning of rule 1 (2) Order XLII A of the Civil Procedure Rules and subject to the control of the High court through such writs as mandamus, certiorari and prohibition. That a cause of action is the fact or combination of facts that give rise to the right of action. The operational words of section 3 of the Judicature (Amendment) Act No. 3 of 2003 are 'any proceedings or matter' which terms are wide enough to include proceedings and report of the commission of inquiry. They do not restrict the cause of action to a final enforceable decision, therefore a remedy for judicial review is concerned not with the decision of which review is sought but with the decision making process. In this case, the application does not confine itself to the relief of certiorari but also seeks a declaration and an injunction. That in the instant case there had been breach of the rules of Natural justice and procedure.

The effect of the above decision is that every tribunal or judicial body should adhere to principles of natural justice. Secondly, the case shows that whenever there is a breach of inter alia natural justice, a specific law has been made that provides a procedure through which an aggrieved person can seek remedy. Accordingly, in **Marko Matovu V Mohammed Sseviru**, Court held that the audi alteram partem rule is a cardinal rule of natural justice so central to Uganda's system of justice that it must be observed by both judicial and administrative tribunals. Where an administrative agency acts contrary to this rule it exceeds powers conferred upon it by parliament and such decision is void and of no consequence in the same way as a decision made without jurisdiction is a nullity.

In **Kaggwa Andrew V Minister of Internal Affairs** HC Misc. Application No. 105 of 2002, court held that the Minister's decision would be quashed for the applicant had not been granted a fair hearing, that this violated the principle of natural justice.

2. Excess or lack of jurisdiction on the part of the deciding authority.
3. An error of law on the case on the record or fraud, perjury or duress in procuring a decision.



Nature of remedy of certiorari

The special characteristic of certiorari is that it issues not because of any personal injury to the applicant, but because of the need to control the machinery of justice in the general public interest. In **Re the Milling Ordinance** (1954) 2 TLR 192, the Court of Appeal considered the nature of certiorari and observed that certiorari is not an appeal in disguise, it does not involve a re-hearing of the issues raised in the proceedings, it exists to correct an error of law on the face of the record or an irregularity in the proceedings or an absence of excess of jurisdiction were shown.

NB. Make a distinction from an appeal it does not look or hear again issues.

In **R Vs Paddington Valuation Officer Ex parte Peachy Property Ltd** (1965) 2 ALLER 836, court considered whether there is any need to issue an order of certiorari to a decision which is ultra-vires and why quash it? Although they also held that it is possible to ignore a void order. In this case, a company owning a large number of properties within the Paddington rating areas, sought certiorari to quash the whole of the valuation list prepared for the area. It was argued that chaos would result if the list was quashed, since, until a list could be prepared, no valid list upon which rates could be levied would exist. **Denning MR** held that such chaos might be ground for not quashing the list immediately, but suspend the operation of certiorari until a new list could be prepared hence certiorari was refused because the valuation officer had not acted erroneously in a way to have the whole list.

PROHIBITION

Is a similar remedy to certiorari but it is prospective rather than retrospective i.e. whereas prohibition issues to prevent a future act or decision, certiorari issues to

quash a decision that has already been made. Typically, prohibition is used to prevent tribunals from dealing with cases over which they have no jurisdiction. Thus, in **R Vs Electricity Commissioners Exparte London Electricity joint committee company Ltd** (1924) 1 KB 171, prohibition was used to



prevent the electricity authority from proceeding with a scheme which was outside its powers. Lords Atkin observed that; "I can see no difference in principle between certiorari and prohibition except that the latter may be involved at an earlier stage. If the proceedings establish that the body complained is exceeding its jurisdiction by entertaining matters which would result in its final decision being brought up and quashed on certiorari, then prohibition would lie to restrain it from so exceeding its jurisdiction"

Excess or lack of jurisdiction

There may be an excess of jurisdiction if the tribunal is improperly constituted, incompetent to adjudicate in respect of the parties, locally or the subject matter of the case. A tribunal may lack jurisdiction if the essential preliminary requirements have been disregarded; or if the proceedings are not properly instituted; or having jurisdiction in the first place, proceeds to entertain matter or make an order beyond its competence. In **De Souza V Tanga Town Council** [1961] EA 377, certiorari order was issued partly on the ground that a mandatory procedure had not been followed which amounted to an excess of jurisdiction. Further, In **Re an Application by Bukoba Gymkhana Club** [1963] EA 478, certiorari was awarded to quash the decision of a liquor licensing board on the ground that it took into account irrelevant considerations.

In **Pius Nuwagaba V LDC High Court Miscellaneous Application No. 589 of 2005**, an application was made by Nuwagaba to quash the decision of LDC in rejecting the application of the applicant and others from Pentacostal University for lack of accreditation by Law Council. While holding that the applicant was a holder of a degree in law granted by a university in Uganda as required by S. 8 of the Advocates Act, Okumu Wengi J stated that the decision of LDC was illegal and irregular and hence the decision would be quashed and an order of prohibition would issue against

LDC from treating the Degree of the applicant as not recognised.

Prohibition has also been ordered in the following examples.

In **R Vs Kent Police authority exparte Godden** (1971) 2 QB 662, a biased adjudicator was prohibited from taking part in the decision. It was held that a doctor who had previously examined a police officer and formed then an opinion that the officer was suffering from mental disorder of a paranoid type, should not subsequently have been appointed to be the 'dully



appointed practitioner' to certify whether the officer was permanently disabled from proper performance of his duties requiring compulsory retirement. Such certification was a judicial-type function, requiring both actual and apparent impartiality. In the circumstances suspicion existed that the doctor would be biased to favour his own earlier diagnosis.

In **R Vs Electricity Commissioners / ex parte London electricity Joint committee Ltd** (1924) 1 KB 171 Atkins J "...prohibition restrains the tribunal from proceeding further in excess of jurisdiction. certiorari requires the record or the order of the court to be quashed or be sent to a unique court to have its legality inquired into. That both deal with excessive jurisdiction."

R Vs Greater London Council Ex parte Black burn (1976) 1 WLR

Prohibition in this case was used to prevent a local authority from licencing indecent firms. NB. Prohibition can be applied for under many circumstances.

S.43, 51, of J.A Cap 13, which provides for the procedure of applying for prerogative orders

Civil procedure amendment judicial review rules statutory instruments no. 75 of 2003

S.2-5. Failure to comply with an order of certiorari or prohibition is punishable as contempt of court. Certiorari/ prohibition may be however denied under certain circumstances.

1. Where there is no locus standi, a person must have sufficient interest in the matter for which the application for judicial review relates.

R Vs Herndon Ex parte Chorley (1932) 2 KB 696

R Vs Thens Magistrates Court Ex parte Green Boam(1957)

2. They may be denied where there is an alternative remedy e.g. an appeal would suffice to do with the injustice e.g. where the law provides for a hierarchy of tribunals and appeals lie from one tribunal to another. E.g. under the Land Act, appeals lie from the sub-county tribunals to the district land tribunals. S.38 of J.A provides that where an application for certiorari is made in respect of proceedings which are subject to appeal, and there is a time limit for filing the appeal,



the court may adjourn the application for certiorari until the appeal has been determined or until the time for appealing has expired.

In **R Vs Chief adjudication officer exparte bland** (1985). B applied for certiorari to quash a decision affecting the amount of social security benefit he could get. The decision could have been appealed against through the social security tribunals. The court refused to grant certiorari saying that it could not by-pass the specialised appeals machinery provided for under the law.

3. Certiorari will also be denied where the applicant delays to make the application as happened in the case of **R Vs Aston University senate**(1969) 2QB538

4. Also where the applicant waives his right to apply, a waiver will be implied where e.g. a party appearing before a tribunal knows that it was improperly constituted because one of the adjudicators has an interest in the case, but raises no objection at the time of the hearing. Such a party will be excluded from going ahead to apply for certiorari to quash the decision. This was illustrated in **R Vs Williams Exparte Phillips** (1914) 1 KB 608

What is the difference between prohibition and certiorari?

The two remedies are very similar and they are hand-in-glove. The difference, however, between the two orders is that the order of certiorari operates to quash a decision that has been made in excess of legal authority. On the other hand the order of prohibition operates to prevent an authority from acting in excess of its legal authority before the authority has completed its proceedings or acting on a decision arrived at in breach of either natural justice or legal procedures among others.

NB. because certiorari and prohibitions are discretionary remedies, the circumstances under which they may be refused are not limited.

MANDAMUS REMEDY

It is an order which compels the performance of a public duty by a public authority. It commands the person or body to whom it is directed to perform a public duty imposed by law. In **R V**



Paddington South Rent Tribunal, exp Milliard [1955] 1 ALLER 691, an order of mandamus was granted against a rent tribunal which had wrongly held that it had no jurisdiction to hear and determine an application properly made to it. The tribunal had a duty to hear cases that fell within its jurisdiction and, as a result of its errors as to its jurisdiction, had improperly declined to hear the case.

It is also a discretionary remedy and court may decline it in cases it deems unsuitable e.g. undue delay on the part of an applicant. In **Broughton Vs Commissioner of stamp duties** (1889) AC 251, the applicant waited for 9 years to claim a tax refund and sought an order of mandamus to compel the commissioner to grant the refund. The order was denied.

It will also be denied where an equally convenient, beneficial and effectual remedy is available. In **Passmore Vs Oswaldwistle** (1898) AC 387; where a complaint to the minister would have been sufficient to deal with the problem. Mandamus was denied because the applicant could have complained to the minister than court.

Where the applicant has no locus standi, mandamus will be denied and the test is whether the applicant has sufficient interest in the matter to which the application relates. In **R Vs Inland Revenue commissioners' ex parte National Federation of self employed and small business Ltd** (1982) AC 617, the issue was whether the federation had a sufficient interest to apply for mandamus. The complaint in this case was the failure of the Inland Revenue to collect taxes due from other people. The House of Lords in holding said; that an examination of the tax legislation far from conferring on the tax payer the right to inquire about other people's tax indicated the reverse by reason of the confidentiality of the relationships between the tax payer and the inland revenue. The applicant did not therefore have sufficient interest in the matter to complain about the non- performance of the inland revenues duty.

On the other hand, mandamus is available to enforce a wide range of duties. It can issue to compel the proper exercise of discretionary power. In cases where there has been failure to exercise a discretionary power, the order will lie to compel proper consideration of the matter; and in cases where there has been abuse of discretionary power, mandamus will lie to order the



exercise of the *power properly*, according to the law. Thus, in Padfield Vs Minister of Agriculture, Fisheries and Food (1968) AC 997, mandamus issued to require/compel the Minister to exercise his power in accordance with the law. That is, to consider the complaint of the appellants according to the law.

In R Vs Manchester Corporation (1911) 1KB 560; mandamus issued to a local authority to make bye-laws which an existing act required it to make. It may also issue to ensure enforcement of the law by the police.

In R Vs Metropolitan police commissioner Exparte Blackburn (1968) 2 QB 118 mandamus issued to compel the police to enforce the law with regard to breach of gaming laws.

In Shah Vs AG(1970) EA 543,

In R Vs Paddington Valuation Officer and Exparte peahery Property corporation Ltd The applicants applied for prerogative orders of mandamus or certiorari directed to compelling the respondent valuation officer to carry out his statutory duties in relation to the cooperation of the valuation list or to quash the list which had come into force. They contended that the respondent (officer) had ignored his duty to value separately each hereditament. That the respondent had taken into account erroneous consideration i.e. controlled rents etc. Court held that certiorari to quash the decision could not be granted because he had acted in good faith and in accordance with the statute.

GROUND OF JUDICIAL REVIEW

1. Ultra-vires.
2. Challenge on jurisdictional grounds i.e certain defined circumstances.
3. Failure through justifiable statutory power that agency on which the power has

been confined has failed properly to retain and exercise a free and unfettered power of judgement e.g a decision maker may operate a self imposed policy unduly strictly and so fail to consider each particular instance on its merits or may have purported to consider himself bound by some virtual / similar undertaking as to how it will exercise its powers.

SIKIA
Low

4. Manner of exercise of an acknowledged power i.e. improperly used for one or more reasons; having taken irrelevant considerations into account or not of a reasonable authority.

5. Procedural irregularity in exercise of an admitted statutory power. non-compliance with procedure expressly laid down.

6. Error of law on the face of record (certiorari ground). Lord Diplock in council of civil service union Vs Minister of the civil service (1985) AC 374

NB. Prohibition / certiorari may be denied where the applicant has no *locus standi* In IRC Vs National Federation Of Self Employed and small business Ltd, Lord Diplock stated' " ... the court should have jurisdiction to grant declaration or an injunction as an alternative to making one of the prerogative orders, whenever in it's discretion it thinks that it is just and convenient to do so, and that this jurisdiction should be exercisable in any case in which the applicant would previously have had locus standi to apply for any of prerogative orders.'

NB. What was the position of mandamus, certiorari and prohibition in the past?

In R Vs Liverpool corporation ex parte Liverpool taxi fleet operations Association (1972) 2QB299 Lord Denning MR, " the of prohibition and certiorari on behalf of any person who is "a person aggrieved" and that includes any person whose interests may be prejudicially affected by what is taking place. It does not include mere busy body that is interfering in things which do not concern him, but includes any person who has a genuine grievance because something has been done or may be done which affects him." In this case, the taxi owners obtained prohibition to prevent an increase in the number of taxi licences in breach of certain undertakings previously given to them.

EQUITABLE REMEDIES

1. Injunctions
2. Declarations.



INJUNCTIONS

Is a court order requiring the party to whom it is addressed to refrain from doing a particular act? Injunctions are provided for under the rules of equity and there are various circumstances under which they may be granted in administrative law.

1. It may be granted to prevent a public body from acting ultra-vires. In **AG V s Fulham Corporation (1921) 1 Ch 440**, the defendant had statutory power to provide wash houses which were to be supplied with facilities for washing and drying clothes. Acting under that power, the defendant provided the members of the public with facilities where they could come and wash their clothes. However, the corporation now proposed to provide a laundry service where the washing would be done by special hired employees. The **AG** contended that such a laundry service contradicted the statute and that the defendant would be acting ultra-vires. The **AG** sought for and successfully obtained an injunction to restrain the corporation from acting ultra- vires.

2. To prevent a public authority from committing a tort. In **Bronbelt Vs Rotherham corporation (1917) 2 Ch 31**, an injunction was granted to restrain the defendant corporation from carrying out administration order without a proper hearing of the owner's case.

In **Pride of Derby and Derbyshire Angling Association Ltd Vs British Celares (1953) Ch 149**, an injunction was granted to prevent a public authority from committing a nuisance i.e polluting a river.

3. To enforce a statute or to secure obedience to the law.

In **AG Vs Harris (1921) 3 ALLER 207**, Harris had been convicted 142 times for selling flowers on the foot path in a forbidden area and his wife had been convicted 95 times. The maximum fine for the offence was just 2 pounds and the Harris' always paid the fine but continued to flout the law. C.A said that although each offence was

trivial, it was right that the Harris' should be stopped from deliberately flouting the law and an injunction was granted.

NB. An injunction is a discretionary remedy and may be refused under certain circumstances e.g



1. It may not be used to interfere with the processes of parliament.

Bradlough Vs Goset (1884) 12 QB 271

2. It will not be granted where the conduct of the applicant does not merit the remedy.
.Since it is equitable remedy and he who comes to equity must come with clean hands.

Glynn Vs Keele University (1971) 2 ALLER 81

NB. In administration law, there are 2 types of injunction i.e

a) Negative injunction aimed at restraining a person from doing something

b) A positive injunction compelling a person to do something. The positive injunction is not usually resorted to in administrative law because the remedy of mandamus is geared towards compelling public bodies to perform their duties and a positive injunction is sometimes referred to as a mandatory injunction.

Where a mandatory / positive injunction is to be granted, there must be a specific time frame within which the act that is sought to be enforced should be done. Accordingly, a mandatory injunction can not be given to compel a person to do a continuous indefinite act.

In **A.G of Kenya Vs Block and another (1959) EA 180**, the A.G sought an injunction to compel the defendant to maintain roads in a certain part of Nairobi. The conditions in the defendant's contract did not specify a time period for road maintenance. The court refused to grant an injunction saying that where there was no time limit for doing of the act, enforcing the injunction would be very difficult and would be a burden of the court. In **Gravesham Borough Council Vs British Railways Board (1978) Ch 379**. Had similar facts but related to maintenance of railway in Gravesham.

3. Court will not grant injunction against government but may only make a declaration on the rights of the parties because it may cause chaos by bringing the machinery of

government to a halt .

DECLARATION

SIKIA
Low

Is an order of the court which merely declares what the legal rights of the parties to the action are without them. It has no coercive force i.e. it does not require anyone to do anything.

NB an application for a declaration can be combined with an application for other types of remedies. It is a particularly useful remedy in administration law and it is a suitable way to settle disputes with the government because it involves no immediate threat of compulsion but is nonetheless effective. It is a wide range remedy that the court will rarely refuse to grant. **Lord Deming In Barnard Vs National Dock Labour Board(1953) 1 ALLER 1113**, that," there is no limit to the power to award a declaration except such limit as the court may impose on itself.

In **Agricultural Training Board Vs Aylesbury Mushrooms Ltd (1972) 1 ALLER 280**

A declaration was obtained to the effect that certain statutory instruments that had been passed were ultra-vires. In **Ridge Vs Baldwin**, where a police officer obtained a declaration that his dismissal was invalid.

All in all, any act of a public authority may be challenged in declaratory proceedings claiming that it is ultra-vires and void.

CIRCUMSTANCES WHERE COURT MAY REFUSE DECLARATION

1. To speculators and busy bodies asking hypothetical questions.

In **Russian commercial; and industrial bank Vs British bank for foreign trade (1921) 2 AC 438**, H.O.L. said; that the question must be real and not a theoretical question, the person raising it must have a real interest to raise it and he must be able to secure a proper contradictor or defendant i.e. some one presently existing who has a true interest to oppose the declaration sought. In other words there a genuine legal issue between the 2 parties.

In **Re; Varnato (1949) Ch 258**, Court said; declaration can not be awarded to answer academic questions. In that case, the applicant sought a declaration to determine whether if an advance were to be made from a trust fund, estate duty might in certain circumstances be payable. Court held that whereas it might be convenient for a trustee to get such a determination, the court could



not award it because if people could go to court merely because they wanted guidance on the orderly of their affairs, they would be no end to the litigation that could follow.

2. Where it's result would be to embarrass and prejudice the security of the state.

In Opolot Vs AG (1969) EA 631, the appellant was formerly a brigadier in the Ugandan army and chief of staff. In 1966, he received a letter informing him of his discharge from the army and was subsequently detained under emergency regulations. He sought a declaration that his discharge from the army was invalid and of no legal effect and that he was still a member of the army and chief of staff. Trial judge held; that the right to a declaratory judgement is discretionary and that in exercise of that discretion, he did not consider this a case in which he would be justified in making the declaration sought. On appeal, it was further held that discretion any power to grant a declaration should only be exercised with the greatest caution and where the declaration sought would embarrass and prejudice the state; it will not be granted.

However, it should be noted that the decision in **Opolot V AG** is no longer good law in so far as it was upholding the common law principle that the crown had the right to appoint and disappoint at any time even without reasons. In Uganda today, such a decision has been overtaken by events and Constitutional provisions. This decision was reconsidered in **Fox Odoi V AG**.

3. No declaration of specific performance for breach of contracts of employment. If an employer wrongfully dismisses an employee, the employee can only seek damages and can not obtain a declaration that his / her dismissal is a nullity because in that case the employment would still continue.

The rationale is that under common law, the master always has power to dismiss the servant. However, in the field of public employment or service, public authorities

must keep within the limits of the powers given to them by statute. Accordingly, where a public servant is dismissed in contravention of the relevant law, he/ she may obtain a declaration prolonging their employment. Is what is in; **Ridge Vs Baldwin(1964) A 40**

Cooper Vs Wilson (1937) 2 KB 309



Vine Vs National Dock Labour Board (1957) AC 488

4. If its effect would be to usurp of the body in question.

In **Shah Vs Barnet London Borough Council**, the council refused to grant Shah a grant to attend to university on the ground that he was not ordinarily resident in the council. Shah sought a declaration to the effect that the council had made an error and that he should be awarded the grant. Court held that a declaration was not the appropriate remedy in the circumstances as it would usurp the council's powers to grant or deny an applicant a grant.

5. For a matter which is not within the realm of law, i.e. political matters that are not clearly defined and regulated by specific legal provisions. This was held in the case of **Malone Vs Metropolitan Police**.

DAMAGES

A person aggrieved by the act or decision of a public authority which amounts to a tort or a breach of contract can sue the government or authority for damages in the accordance with the government proceedings Act Cap 77.

Damages can be classified into 3 types.

1. Special damages.

These can be claimed in respect of matters whose value can be quantified and specifically proven

e.g. through receipt for goods and services issued to the plaintiff.

In **Kafumba Mukasa Vs AG (1980) HCB**, Court held that without receipt or other specific proof, a cause of action for specific damages may not succeed.

2. General damages.

Are damages which can not be specifically ascertained, they include compensation awarded for pain and suffering, inconveniences, loss of future prospects. **In Deported Asians Property Custodian Board Vs Kayondo (1982) HCB 1**, Court held that general damages are awarded at the discretion of court.



3. Exemplary damages.

These are awarded as a deterrent or punishment of the defendant. Where the defendant's conduct has been oppressive and arbitrary e.g. in cases of false imprisonment.

Obong Vs Municipal Council Of Kisumu(1971) EA

NON-JUDICIAL REMEDIES

These are remedies which are not obtained from court.

-I.G.G

-Commissions of inquiry

-Uganda Human Rights Commission

Relevant law;

Commission of inquiry

Administrative bodies which are adopted or constituted to investigate any matter of public concern.

S.1 of commission of inquiry acts.

Art 99 delegation of powers, ministers can act for the president.-when an allegation has been made e.g accident

2000- Rampant closure of banks and certain recommendations made.

1999- Rampant corruption of police force-certain heads e.g Bakiza etc. Justice Julia

Sebutinde. Exploitation of Congo resources -led by Justice Porter

Recent commission in URA- Sebutinde

Who heads it;

- it's headed by a judge of supreme court and assisted by some who may not be senior lawyers.

-technicalities may require renown and knowledgeable people.

-lead counsel

-secretary to the minister.

An instrument signed by the authority and should be gazetted to give it legal backing S.15 of CIA and it indicates terms of reference- subject matter and area to cover e.g corruption in URA. Duration of the inquiry



S.1 (2) CIA

- empowered to call witnesses and question them e.g in writing S.9 -commissioners are given powers of high court

-can change contempt of court. S.12- appear with an advocate.

-Act impartially and fairly-observe rules of National justice. Aslund V s A.G S.6 CIA --S.4

-make recommendations / report and signed by commissioners

Justice Katsusi in **Aslund Vs A.G** to the authority and not allowed to implement

- free to adopt their own rules of procedure to guide them in conduct of their work.

Importance;

1. They allow some things which could not be handled by court because of it's informality' political nature etc.
2. Held in public and open to every body.
3. can lead to other remedies to be granted.

Failures.

-In effective reporting and implementation e.g commission of inquiry of minerals in Congo and gold scandal during Obote 1.-no powers to punish.

-stigmatisation of individuals

-expensive and under funding

-temporarily therefore continuous existence of the problem therefore partial solutions are provided.

-political influence (undue influence from the state)

Quorum S.1

Aslund Vs AG -quorum was the chairperson and any of the 2 commissioners but 2

minus chairman is invalid.

JUDICIAL REVIEW



The role of administrative law is to ensure that public officials exercise their functions for the sole purpose of attaining the objectives of the relevant legislation. All public officers derive their authority from legislation enactments. Their duty is therefore to give effect to the provisions of those enactments.

- This is done through exercising powers which they have i.e they must act intra-vires they are also expected to follow established procedures and these are necessary because of the requirements of transparency, consistency, uniformity and fairness.

- Public authorities are also expected to put in effect of Natural justice whenever they are called upon to adjudicate over rights of persons.

- P.A are also expected to exhibit a high degree of honesty, uprightness and to avoid all forms of bias i.e exercise public powers for public purposes/ to promote private interests whenever a public officer fails to act in a manner which promotes public interest, administrative law may be involved to correct that situation. A person who is aggrieved by an act or decision of a P.O has various options under the law.

1. An ordinary suit against a public officer or government or government department.

2. Reference to an administrative tribunal if there is a tribunal set for that purpose e.g land matter, tax-tax appeals.

3. Make an appeal to the relevant organ.

4. An application for judicial review.

5. Seek non judicial remedies through established agencies e.g. IGG public services commission.

Art.42 provides that all persons who appear before P.O or bodies are entitled to the following;

-fairness



-justice

-access to courts whenever a person feels cheated

The judicature act gives general rights relating to access to remedies in courts.

S.13 JA provided that high court shall have unlimited jurisdiction over all matters in Uganda that implies that the high court can entertain any complaint and can hear all disputes.

The J.A also provides that the high court is vested with the powers which were vested in the high court immediately before the commencement of that act i.e. high court enjoyed powers to review judicial decisions and hence the above powers. **S.33** provides that the high court may grant such remedies as it deems fit in any legal or equitable claim therefore high court can give remedies in respect of complaints against public officials. High court is also given powers to give specific remedies which can not be obtained from any other court e.g. remedies of Habeas corpus, mandamus, certiorari and prohibitions (prerogative remedies) and can only be obtained against public officials.

When can courts intervene in administration decisions passed by public authorities? It is a general rule that courts are not expected to interfere with administration decisions unless they are justification for such interference. Courts of law are not expected to judge the movements relating to particular decisions. They are only expected to intervene in the following circumstances.

1. Where power is exercised by the wrong authority/ ultra-vires principle.
2. Where the relevant procedures are not adhered to / respected.
3. Where there is abuse of discretionary powers.
4. Where principles of national justice are ignored.

Under common law the areas of justice intervention in administration process have been formulated as including the following;

1. Illegality-ultra-vires
2. Irrationality- abuse of discretionary powers
3. Procedural impropriety - failure to follow procedures.



NB. These remedies are only available after exhausting the local remedies as provided under

S.38 JA.

Council for civil unions Vs The minister for civil service (1985) AC 374

Qn. Distinguish between appeals and judicial review

1. Appeals are statutory; available through some legal provisions. Where there is no law providing for right of appeal, the remedy is not available to an aggrieved person. Where there is a right to appeal, the aggrieved party is expected to exhaust that right of appeal before going to courts of law. Where there is no right to appeal the aggrieved party may apply to court of law to seek redress through judicial review.

2. Appeals are usually on the merits i.e. the argument whether a particular decision was wrong or right. While judicial review is usually about the process leading to the decision.

3. Grounds on which an appeal can be made are provided for / contained in the statute which provides for an appeal therefore no other grounds than the specified ones in the statute. While judicial review is available on those grounds of illegality, irrationality and procedural impropriety. In **Karinari Corner Bar and Restaurant V Liquor Licensing Board (1967) EA 426**, the grounds for appeal which were stated in the statute were restricted to refusal, renew, or transfer a licence. In the instant case, the appeal was based on refusal to grant a licence. The appeal failed because the ground of refusal to grant a licence was not one of those grounds from which an appeal would lie or would be lodged.

4. An appeal may also be restricted by time limits J.R is however normally open and can be brought at any time. In *An Application of Punja Shah*. The statute provided for the time limit of 21 days in which an appeal could be made. The decision which

was subject of complaint was communicated after expiry of the period in which the appeal could be made. In such circumstances an appeal can not be made unless there is a waiver of the time limit. The court however may exercise it's discretion to review this matter on its own merits.



5. Judicial Review results into specific public law remedies i.e. mandamus certiorari and prohibition. An applicant for judicial review must be aiming at any of those remedies if the applicant is seeking other remedies like damages, injunction, specific performance; Judicial Review is not the option.

6. The appropriate appellate court/ body is normally indicated in the statute.e.g in tax matters, there is a tax tribunal. Tax appeals tribunal, from decisions of URA, public officials like a Minister e.g older statutes used to give Ministers appellate powers in licensing, high court, or a lower court. e.g electoral matters relating to nomination of candidates may be subject to appeals to the High Court.

7. On the other hand, Judicial Review is only available in the High Court in accordance with provisions of Judicature Act and the Amendment thereof.

Question

1. Who can be a subject of judicial review?

The panel of takeovers and mergers *ex parte* dateline (1987) QB 17

2. What is a public power? (One that public authority exercises).

In **R Vs Disciplinary Committee of Jockey Club *Ex parte* Aghakhan (1993) 1 WLR 909**. This issue was whether the decision by the club's disciplinary committee of disqualifying (race winners) owners horse from race and finishing the trainer for alleged prevalence of obtained substance in the race winner's would be amenable to judicial review. Court held dismissing the appeal that although the hockey club exercised administration control over racing activities in Great Britain , its powers and duties will in no sense governmental or derived from the actual relationship between the club and those aggrieved to be bound by the rules of racing; that such powers gave rise to private rights enforceable by private actions in which effective relief by way of declaration , injunction and damages are available and that accordingly , the

club's decision was not amenable to judicial review.



In the same case it was noted that; under common law there is a series of precedents which give courts powers to interfere with decisions of administrative officials. It is a general principle that courts are not expected to substitute them selves for administration agencies i.e. courts should not be normally concerned with merits of administration decision. However, common law recognises that courts have a role were rights of persons are interfered with by administrative officials.

Under common law, courts have removed the grounds for judicial review and it is only available in the following circumstances;

1. Procedural impropriety
2. Abuse of discretionary powers
3. Acting ultra-vires (illegality or acting beyond powers)

In **Aluminium and Industrial works Ltd Vs Minister of Agriculture**; Court stated interalia; that the court should be guided by consideration not whether the administration agency was right but whether it is wrong. Appeals are concerned about correcting what is wrong.

-it's the duty of the applicant to satisfy court that the decision was wrong. Such consideration of "right and wrong do not apply to judicial review"

DOCTRINE OF ULTRA-VIRES

Public Authority (ies) herein abbreviated as PA can only exercise legally powers which they have under the law. Ultra- vires arises where a P.A exercises powers illegally. It may be substantive which means that a P.A did not have powers he purported to exercise. It may also be procedural in the sense that public authorities adopt procedures which are not provided for under the law i.e. he had ignored the established procedures.

Substantive Ultra-vires

It arises where a P.A exercises powers or functions which are not granted by the relevant statute

/ law. Courts may be called upon to intervene where a public authority exercises powers which are not granted and courts can give appropriate remedies after interpreting the provisions of the



relevant statute e.g. ultra-vires will arise on grounds of jurisdiction. In **Re: Abdalla Salim Ali (1967)**, the principal immigration officer wanted to deport the plaintiff. The plaintiff pleaded that he was a Tanzanian citizen so he could not be deported to another country. Court held that if the principal immigration officer did not have the powers to do so, he acted ultra-vires his powers by deporting a Tanzanian citizen which were not provided for by the statute.

Ultra-vires may also arise where conditions precedent to exercise particular powers are not fulfilled. In **Estates and Trustees agency Vs Singapore I.T (1937) AC 898**, the relevant authority was given powers to demolish buildings which were unfit for human habitation. The relevant authority went ahead and demolished the applicant's house but that the condition was not fulfilled. Court held that failure to satisfy the pre-condition meant the resultant act was ultra- vires.

Ultra-vires may also arise where an action is taken by a wrong authority. All statutes normally have the organisational frame work of carrying out certain activities.

It may also arise where the proper authority is improperly constituted i.e. membership of proper authority is not properly put. Such examples include instances where some decisions have to be made by tribunals composed of many members like the land tribunal, Tax appeals tribunal (3 members), therefore it will arise where non-members participate in making the decision.

In **Dent Vs Kiambu Liquor Licensing Court (1968) EA 80**, Dent applied for a liquor licence. While considering the application to grant or not to grant the license, non-members were allowed to give their views by show of hands. Court held that the decision of the liquor licensing court was ultra-vires because it was improperly constituted in terms of membership and that the proper members acted under

dictation from a particular group of people.

In addition, the proper authority may also not be properly constituted where provisions relating to quorum are not fulfilled i.e. a minimum number of required members are not realised. In **Sunderji Virji Vs Punja Hila (1959) EA 734**, the rent restrictions act gave power to the rent tribunal to determine the amount of rent that was to be paid by tenants to land lords. The



chairman of the tribunal sat alone and determined the rent payable as between tenants and land lords. Court held that the act of the chairman was ultra-vires because the tribunal could only reach such decisions when it had a minimum membership present.

NB. Where there is no quorum, majority can act legally.

Question; Supposing a decision has to be made by a panel of persons and in the course of proceedings one member does not turn up- is the quorum there?

In such a case, quorum should as much as possible be maintained through out, where quorum is not maintained, it may be regarded as having been improperly constituted.

Ultra-vires may also arise where there is illegal transfer of powers. This arises due to the principle that a delegate can not delegate (secondary delegation). Examples include judicial powers; discretionary powers, where the law expressly disregards / prohibits delegation (statutory prohibition) In **Howard V Borneman & others [1973] 3 ALLER 64**, under section 28 of the Finance Act, a tribunal was to consist of a chairman and two or more persons appointed by the local chancellor as having special knowledge of and experience in participation by members in decision, one member was absent broad. The issue before court was whether his absence and non participation in the decision made the decision null and void. Court held that in absence of the fourth member, the purported determination was not valid determination. The tribunal had to be consisted of full members and the provision for determination by quorum could not be implied in section 28 of the Act.

In **Rahemtula Gullamani Vs R**, the control ordinance empowered the governor to make rules for destruction of cotton plants after the harvest season. The governor delegated his powers to make decisions to the director of agriculture and he gave him powers to determine for dates of which all cotton stores would have complied with

that requirement. The appellant did not comply and was prosecuted and he challenged the notice issued by the director of agriculture, court agreed with him in that Held; that the delegation was ultra-vires in so far as it purported to give the director of agriculture legislative powers.



In **Jan Mohammed Vs R**, Had similar facts-governor had powers under native produce import powers to make rules regarding how native produce. The governor directed his power to director of agriculture to specify the areas of operation of rules. The appellant challenged the validity made by the director of agriculture. Court held that they were ultra-vires because the delegation of making rules was unlawful.

Procedural ultra-vires

P.A is expected to act within the procedures which are laid down under the relevant law. Procedures are usually put in place because of the need to ensure that the following are in place;

1. Transparency to avoid arbitrariness.

Public officials should at all times adopt procedures which are known and which do not lead to arbitrariness.

2. To ensure fairness in decision making. Absence of procedures may lead to partial handling of public affairs.

3. To ensure that justice prevails. They normally put in place mechanisms which ensure that the P.A is guided in reaching justice.

4. Ensure that decisions are consistent like cases are treated in the same way.

5. Some procedures require public participation in decision making.

6. Way of informing the public on what is about to be decided and / or what has been decided.

Procedural requirements include;

a) **Consultation**- many laws require to be made after a consultative process. This will raise issues which need to be answered by a particular policy or law.

- Statutes will normally indicate who should consult who; a person to consult is usually a person charged with formation of a particular law or policy.



-they also normally provide / indicate who consulted include interest groups, professional body which is in line with that activity, government departments. The main purpose of consultation is to ensure that the resultant policies /laws are accepted by the greater majority of persons and once they are accepted they are easy to implement. Failure to consult means that the P.A has acted ultra-vires and the decision which follows will be regarded as void.

b) **Gazetting in promulgation.** It is a requirement under many laws e.g. election laws, land Act, companies act etc. Local Government Act requires gazetting subsidiary bye laws or ordinances. For instance **Section 38 (4)** of the Local Government Act provides that a bill enacted by the district council and signed by the district chairperson under this section shall be an ordinance of the council and shall be published in the official Gazette and in the local media.

- Further more, the requirement of gazetting is found in the interpretation act, under the Interpretation Act between sections 13-16. There is a requirement in all subsidiary legislation, in whatever form or name must be gazetted before courts can take their validity of existence (judicial notice)

In **Mwanji Vs R**, Court held that regulations which purport to amend some existing legislation must be gazetted in accordance with the provisions of the interpretation act. Where gazetting is not done, such regulation can not be enforced.

c) **Antecedent publication**

Some laws require publication before enactment of regulation. This is usually a form of a consultative process. It enables the affected persons to know what is being proposed and to give their views on the proposals. Antecedent publication may be in the Uganda gazette e.g. under acts of parliament act. It may also be in any other

publication like newspapers, or by putting the publication in a conspicuous place or in a place accessible to the public like it is a requirement in a local government act (proposals and bye-laws). The third schedule to the **LGA** requires in paragraph 16 that the council shall, not later than fourteen days before a bill is to be debated by the council, publish the draft (a) by fixing a copy of the bill in a conspicuous place on or near the outer door of the office of the district council during office hours; (b) by including the bill as a



supplement to an official local publication, if any; (c) by availing copies of the bill to the public; or (d) in any other manner as is customary in the area. (2) There shall be attached to the bill for publication a short memorandum signed by the person introducing the bill, setting out the policy matter of the bill and how the bill seeks to implement that policy.

d) **Approval**

Some statutes require that certain decisions be approved by a particular public body, such a public body may be a minister, and statutory corporation e.t.c. **S.175 of LGA** gives power to the Minister of Local Government power to amend the schedules of LGA. It also requires that such amendment should be approved by cabinet. Failure amounts to ultra-vires and nullity.

e) **Laying before parliament**

This is not the usual procedure under the modern statutes, but there are some old statutes of parliament which require subsidiary legislation to be laid before parliament before laws become operational.

In **Wakiso Estates Vs R**, there was a legal requirement that regulations made under the labour ordinance be laid before the legislature before they could become operational, this regulations were not laid before the legislature as according to the provision of the ordinance. Wakiso estate was prosecuted for breach of these regulations. They challenged the validity of the regulations because they had been enacted by not following the procedures envisaged under the ordinance. Court held; that regulations were invalid and ultra-vires in so far as they procedures were concerned.

In **Ridge Vs Baldwin and others**, this was a case involving disciplinary proceedings against a chief constable police, he was dismissed but the relevant committee did not

give him a hearing as required by regulations which concerned disciplinary proceedings in the police force and he challenged the outcome of those proceedings. Held that in as much as the decision was arrived at in complete disregard of the regulations, it must be regarded as void and of no effect.



Principles of natural justice also require the relevant authorities to follow common law procedures which are not found in statutes. Breach of those procedures is subject of denial of principles of natural justice. It is not necessarily ultra-vires. Ultra-vires can only be outside the scope of a particular law.

Research;

Grounds of judicial review were summarised by **Lord Diplock in Government Committee Headquarters Vs Minister for civil service** that the grounds which an administrative action may be subject to judicial review... would call it ;-illegality, irrationality and procedural impropriety.

Question; Does failure to follow procedure render an act void?

ABUSE OF DISCRETIONARY POWERS

Discretionary Powers (herein abbreviated as DP) are granted for purpose of attainment of specific objectives in particular legislation. D.P must be exercised judicially i.e. in

- a) Accordance with the law.
- b) Basing the decision on facts or available evidence.
- c) Taking into account principles of natural justice.

The general principle is that there is no absolute discretion. The law does not expect public officials to do whatever they like from the powers granted to them. Reasons for discretion could be different circumstances that need to be taken into account before reaching a certain decision.

Discretion may however be used as a flexible tool of managing public affairs; Public officers to make flexible decisions based on circumstances. Like all powers, discretionary powers may be abused and administrative law intervenes where P.A abuse their powers of discretion.

How can discretionary powers be abused?

1. Where power is used for improper purposes.
2. Where discretion is based on irrelevant consideration.
3. Unreasonableness.
4. Where P.A does a wrong thing.



5. Where discretion is fettered/ restricted.
6. Acting without evidence while making decisions.

a) **Improper purposes.**

P.A is expected to use D.P to achieve objectives which are stated / anticipated under a particular legislation. I.e consequential.

In **Padfield Vs Minister of Agriculture**, it was stated as a principle that a public authority uses statutory powers to achieve the stated objectives. Where a P.A acts otherwise, it will be deemed to have abused its discretion even if the result is beneficial to the relevant community.

In **Sydney Municipal Council Vs Campbell**, a P.A had statutory powers which he could exercise with its absolute discretion and this statutory power was given to the P.A to acquire land for the purpose of modelling the city. Mr. Campbell's land was acquired using this D.P in acquiring the land; the stated objective was that the land would be disposed of at a future date and at a higher price. The acquisition of land in this case for purposes of speculation was held to be a situation where P.A had used its statutory powers for an improper purpose. Court went ahead and issued an injunction to the council restraining it to acquire the land.

In **Wheeler Vs Leicester C.C (1985) AC 554 / (1988) 2 ALLER**, the appellant sought judicial review to compel the city council to quash a resolution of the council which had prevented the appellant from using one of the council recreational grounds. The council had statutory powers to allow or withhold permission for use of its grounds. The stated reason for refusal was that members of the Right Wing club had toured South Africa during the time of apartheid. The resolution of the council had been motivated by the desire to harmonise race relations within the city. Court

agreed with the appellant and Held that it was an abuse of discretionary powers to deny the appellant recreational facilities because of the desire to harmonise race relations within the city. That this was an example where D.P were used to achieve something beyond the scope of the statute.



In **Robert Vs Hopwood**, powers were given to the local authority to fix the level of wages that would be paid to the employees of the local authority. The local authority went ahead and fixed equal wages for both males and females. Prior to that, women were earning less. Court held that court refused to confirm that this D.P had been properly exercised. That their discretion had been based on Eurocentric principles of socialist philanthropy or feminist ambition to secure equality of sexes in wages in the world of labour.

NB. Power should be used to link the works to establish objectives.

b) Irrelevant considerations.

The exercise for discretion calls for taking into account relevant facts. Relevant facts may be expressly stated or implied depending on the circumstances.

In Associated provincial picture houses Vs Wednesbury Corporation, the Judge stated " that the exercise of discretion must be a real if in the statute conferring discretion there is to be found expressly or by implication matters of the authority ought to have regard to and then in exercising these discretion, he must have regard to those matters..." that the authority must disregard irrelevant collateral matters." In this particular case a licensing authority had powers to licence cinema halls and to impose such conditions as it deemed fit. The conditions was that no children under 15 years shall be admitted to any entertainment whether accompanied by an adult or not and one of the issues was whether age was relevant in licensing those particular activities. Court held that this was a reasonable and relevant fact which was motivated by desire to protect the welfare of children.

There are cases where courts have interfered with administrative decisions on grounds of irrelevant considerations. In **Re; Gymkhana Club**, the club applied for a renewal of its licence which it had held for over 34 years. The licencing authority refused to

renew the licence on grounds that the ground was still largely discriminatory in its membership and the licencing authority based its accusations of discrimination on internal rules of the club which required that a person can only become a member if she/ he is supported by an existing member that due to such exclusive membership. The club challenged the decision of licencing authority on grounds that its internal rules were irrelevant in the issue of application before the licencing authority.



Court held that the decision had been based on admission rules which were not relevant to the exercise of discretion.

In **Fernandes Vs Kericho Licencing Court**, the licence was denied to Fernandes on grounds that he was not a Kenyan citizen. There were no statutory requirements for this citizenship to acquire a licence. Court held that the licencing authority had abused its D.P by using irrelevant considerations. Equally, in **Shah Vs Transport Licencing Board**, a Licence was denied to Shah (applicant) on because it was aimed at removing imbalances between Kenyans and non- citizens. Court held that this was abuse of discretionary powers using irrelevant reasons.

In **Mandhwa Vs City Council of Nairobi**, allocation of stalls was denied because of the desire to allocate stalls to Kenyans of African origin. Court held that issue of race and citizenship were irrelevant and should not have taken into account.

Other irrelevant considerations include;

- place of origin
- nationality in sense of tribe
- race
- gender consideration unless for purpose of affirmative action
- colour
- religion.

c) **Unreasonableness.**

Discretionary powers are expected to be exercised within the grounds of reason. What is reasonable depends on circumstances of each case. P.A is expected to act reasonably so as to achieve the objectives of a particular statute. Examples where judicial discretion has been challenged for having acted unreasonably include the following; In **Associated Provincial Picture Houses Vs Wednasbury Corporation**

court held that P.A must act reasonably and must take into account relevant considerations.

In **Robert Vs Hopwood**



, Court held that it was unreasonable for P.A to use its discretionary powers regarding wages and put in place provisions that require payment of equal wages to men and women. Similarly in **Prescole Vs Birmingham Corporation**, A local authority was held to be unreasonable where he used his powers to set fares which were payable to local transport system by allowing free travel for senior citizens.

In **Re; Bukoba Gyamukhana Club**, Court held that a licencing authority had acted unreasonably where he refused a licence by considering irrelevant factors. The question of reasonableness depends on what is acceptable in that particular society or establishment.

Procedural defects (additional authorities)

1) Consultation.

-It involves some indication of what the obligation involves. In **Rollo Vs Minister of Town and county planning (1948) 1 ALLER 13**, a Minister was obliged under the Town & County Planning Act to consult with " any local authorities which appear to him to be concerned " before making an order designating an area as the site of a new town, **Bucknill, L.J** said " on the one side the minister must supply sufficient information to the local authority to enable them to tender advise and on the other hand, a sufficient opportunity must be given to the local authority to tender that advise" therefore the essence of consultation is to tender genuine invitation extended with acceptable mind to give advise.

In **R Vs Secretary of state for social services Exparte Association of Metropolitan Authorities (1986) 1 ALLER 164**, Webster J explained "... it must go without saying that to achieve consultation, sufficient information must be supplied

by the consulting to the consulted party to enable it to tender helpful advise. Sufficient time must be given... to enable it to do so and for such advice to be considered..."

Consequence of failure to consult

At all / properly -courts will hold that there has been breach of a mandatory procedural requirement of the enabling act rendering the subordinate legislation invalid and of no effect.



In **Kruse Vs Johnson**, Lord Russell C.J said ;" unreasonableness in what sense? if for instance they (by laws) were found to be partial and unequal in their operation as between different classes. if they were manifestly unjust; if they disclosed bad faith; if they involved such oppressive or gratuitous interference with the rights of those subject to them as could find no justification in minds of reasonable men, court might well say " parliament never intended to give authority to make such rules; they are reasonable and ultra-vires therefore I conceive unreasonableness only in this sense.

Appeals

Error of law may be seen;

1. by referring to express misstatement of law contained in the reasons given for a decision.
2. Showing that no tribunal properly directed as to the law could have reached a particular conclusion it had reached, given the facts it had found. In **Global plant Ltd Vs Secretary of state for health and social security (1972) 1 QB 139**, court considered the scope of appeal on a point of law when it was alleged that the minister had wrongfully taken the view that 2 drivers were employed rather than independent contractors so requiring the employing company to pay the national insurance contributions. The company was unable to establish such error and so failed to show error of law in its appeal.

c) **Divesture of discretionary powers/ rules against divesture. (Fettering/ restriction of divestiture of discretionary powers** (Rule against divestiture of discretionary powers)

A public authority is given discretionary power on the understanding that the power will be exercised by that particular authority. As a result, the general rule is that a delegate cannot delegate. In **South Port Corporation V Birkdale District Electricity S.S**, Court stated that, "It is a well established principle that a person or

public authority entrusted by the legislature with certain powers can not divest themselves of the powers. They cannot enter into any contracts or take any action incompatible with the due exercise of their powers.”

Public authorities can divest their powers through a number

of ways; Question; *How can a public authority divest it's powers?*



- by way of contract
- by way of acting under dictation
- by way of transfer of discretionary power

Contract

A P.A enters a contract with a person not to exercise the discretionary power. The general rule is that a P.A can not bind itself not to exercise discretionary powers. It can not enter a contract which limits it to exercise its discretionary power. In **S.S. Amphite Vs The King**, Court held that an executive authority can not enter into a contract that limits its freedom to exercise executive powers and by nature executive powers are discretionary. The brief facts of this case are that, an agreement for a contract was entered into between the British representative and owners of shipping amphite. The substance of the agreement was that the ship would be allowed to sail and dock into any English port and also that it would be allowed to carry away goods from an English port. This was a time of war and because of the war situation, the British government declined to put in place this contract. The ship owners sued for breach of contract. Court held that the contract was unenforceable in so far as it bound the British government not to exercise its discretionary powers.

Similarly in **Stringer Vs Minister of local government**; a contract that purported to take away

D.P was held to be illegal and unenforceable. In this case, a local authority had entered an agreement with Manchester University where by it was agreed that the local authority would not allow any development within the neighbourhood of the university's radio telescope. The complainants were denied a planning permission because of the agreement. Court held that the local authority had abused its D.P by signing an agreement which restricts its freedom of operation.

Adherence to policy

The local authority may also be deemed to be fettering its discretionary powers where it strictly adheres to policy. Policy may be self imposed; the public authority puts in place policies which restricts its powers. An example of self imposing policy is found in the case of **Singh V Municipal Council of Nairobi**, where a local authority refused to exercise discretion regarding



licensing. It refused to reconsider an application for a license on its merits. The reason was that the Municipality had passed a resolution that there would be no issue of that type of license for that type of business. Court held that that was limiting exercise of discretionary powers.

Likewise, in **Municipal Council of Brocken Hill V Patel**, the local authority refused to give Patel a license for running a bar. The reason given was that there were many bars in that area and that the council had decided not to license any more bar operators. This was held to be a self imposed policy.

Dictation

P.A with discretionary powers is expected to apply its own judgement in matters relating to discretion. It is not supposed to be directed as to how the power should be exercised. It does not matter whether the direction comes from superior officers. Public officers/ authorities who follow the law is protected under art.173 of constitution.

In **Simms Motor Units Vs Minister of labour and national service**, emergency regulations provided that employees who had been dismissed for serious misconduct could complain to an officer within ministry of labour and there was also provision for appeal to labour against the officer's decision. The minister of labour directed the board on how it should handle certain cases. The minister specifically directed that whenever the board was unanimous and the complaint required re-instatement in service the board will always order for re-instatement. The employers had challenged such a directive and court agreed. Court held that the minister's directives made it impossible for the relevant officers to exercise their own dictation.

In **Dent Vs Kiambu Liquor Licencing Board**, the licencing board refused to renew Dent's licence and licencing court based its decision on the views of the local

residents who argued that Dent should not be given a licence because he was not easy to the locals even voted against the granting of the licence. Dent challenged their refusal on grounds that it had been arrived at through the process of dictation. Court held that the P.A had not exercised its D.P by itself but had been overwhelmed by views of the person's to reach that decision.



Dictation may also arise where there is over reliance on established policies which may be departmental or national. A policy which is not a law can not affect the exercise the statutory discretionary powers, unless the policy is translated into law to become effective through parliament. The general principle is that policies can not be used to undermine the exercise of discretionary powers.

In **Shah Vs Municipal Council of Nairobi**, a licencing authority refused to give Shah a licence because of its own policy of not licencing that type of business any more. Held; that the licencing authority had been restricted by it's own policies and had not exercised it's discretion given the law.

P.A may also be challenged where he followed national policies in a manner which defeats its own discretion. In **Mandwa Vs City Council of Nairobi**, A trading stall was denied to the applicant because of the government policy of Africanisation of commerce. Similarly in **Fernandes Vs Kericho Licencing Court**, a licence was refused on grounds that the applicant was not a Kenyan citizen. The applicant challenged the refusal to issue the licence because the L.A had acted under policy and not exercised discretion.

Policy may however, be taken into account during the process of exercising discretion. It's not what the law prohibits is rigid adherence to established policies. In some cases, consideration of policies has been upheld as relevant. In **Kenya aluminium works Vs Minister of agriculture**; court accepted that in some cases, policy may influence exercise of discretion.

d) **Acting without evidence.**

Public authorities are expected to exercise discretionary powers judicially, meaning they must take into account relevant facts / evidence. Relevant facts are normally

obtained by way of evidence. Evidence is by way of testimony or submission before the relevant authority.

Discretion is not absolute and evidence available may indicate whether discretion was judicious or not. In **Peera Vs Dellasanta**, the rent tribunal fixed a rent payable under its powers given under statute. The rent tribunal however did not indicate the basis of arriving at the rent which



they fixed. The High court overturned the decision on grounds that it was arrived at without any evidence on record.

Similarly in *Dent Vs Kiambu Liquor licencing court*, one of the issues was whether the licencing authority had acted without evidence. Court established as a matter of fact that the facts that were relied upon to deny the applicant a licence were not adduced as evidence and not proved to exist before the licencing authority and held that licencing authority was wrong to rely on such allegations.

In **Munene Vs R**, the applicant was a medical doctor who had been charged of infamous and disgraceful conduct before medical board. The board ordered the applicant's name to be struck off the medical register for 2 years and applicant appealed to high court on grounds that the decision had been based on wrong facts / allegations. The applicant was especially against the severity of the sentence. The board had arrived at the sentence on the basis that several doctors had been charged of the same offence. There was however no evidence to support that fact as a matter of fact only one doctor had been charged for a similar offence. The High court reduced the severity of the sentence because it had been arrived at without evidence.

e) Failure to give reasons.

As a general rule, P.A has no duty to give reasons for every particular decision it makes. The duty may however arise, where a statute expressly or by implication requires reasons to be stated. In such cases, P.A will be under a duty to give reasons for a particular decision.

Judicial authorities also suggest that mandamus may lie where a P.A fails to state reasons where there is a duty to state reason. In cases where P.A has to choose from various options, it is normal to state the reasons why a particular option was chosen.

Read the case of **Brayhead VS Birkshire Town Council (1964) 2QB 467**

f) Error on record

Where there is a mistake in the proceedings either by way of record or otherwise, the error may be in recording evidence, assumptions of jurisdiction. An error which influences the outcome of



as particular decision may result into judicial review. Many procedures in civil law and administration normally give room for correction of mistakes.

TOPIC

PROCEEDINGS AGAINST GOVERNMENT

Brief background

Under common law, it was a general presumption that the crown could not do anything wrong. In theory the crown could do no wrong therefore no liability could ensue against it. Therefore legal proceedings against government were restricted on this ground because government was her/ his majesty's government. This is what is otherwise referred to as immunity from liability. This old age theory that the King could do wrong ignored the fact that the King had a personal capacity as well as a political. This was inappropriately inherited by almost all erstwhile British colonies, Uganda inclusive.

However, common law recognised limited legal liability against government and this could be instituted by way of a royal fiat / petition of right. Under this procedure, the prospective litigant against the crown could seek permission of the crown itself before he could commence proceedings.

Before 1947, in England, an action could be 'brought against a Crown servant as a nominal defendant, on the understanding that the Crown would satisfy any judgement against him.' A Royal commission submitted a draft bill of reform but the bill did not become law. When, in 1946, the House of Lords refused to uphold the fiction of the

nominated defendant reform could no longer be delayed.

In torts, there was a prerogative immunity which was based on vicarious liability against government. Public officers had to be sued in their personal capacity. After great agitation, the



Crown Proceedings Act, 1947, was passed and it subjected the Crown to private law, with serious reservations.

In relation to the change in British colonies especially East Africa, it was submitted that it was desirable in a modern democratic state, that subject to certain safeguards, the Government should be able to sue and be sued as if it were a private person of full capacity. 'If state action results in individual damage to particular citizens, the state should make redress, whether or not there is fault committed by the public officers concerned. The state is, in some ways, an insurer of what is often called social risk.' As a result, the iniquitous rule whereby government is not liable, in tort or breach of contract committed by its servants has long been discarded.

Ugandan position

The government proceedings act was modelled on the Crown Proceedings Act 1947. The GPA makes it possible for government to be sued as if it was a private person. GPA cap 77. There are special procedures and exemptions that may affect government liability contained in the Civil Procedure and Limitation (miscellaneous provisions) Act cap 72.

When is government liable?

The Government Proceedings Act imposes legal liability on government in respect of;

- contracts

- torts

- breach of statutory duty

- any breach of those duties which a person owes to his servants or agents at common law by reason of being their employee.

Contract

Under common law, liability under contract could only be enforced by way of a royal fiat. This position was found to be unsuitable when governments became increasingly party to contracts which were of a commercial nature. Such contracts included; contracts for supply of goods,



services, construction contracts, employment contracts etc. Such contracts required each party to meet its obligation under contracts. S.2 of GPA provides that government may be sued in contracts as if it was a private person. This therefore means that government can contract as if it was a private person and once it contracts, it's bound by the laws of contract. Such contracts may be enforced under the general law of contract or under the specific laws relating to various contracts e.g employment contracts may be enforced under provisions of the Constitution, public service laws, public service regulations and standing orders.

Section 2 of the Government Proceedings Act provides that where any person has a claim against the Government after the commencement of this Act and the claim is either (a) a claim based on contract which, if this Act had not been passed, might by virtue of the Suits By or Against the Government Ordinance have been enforced by an action against the Government; or (b) such that, if it had been made in England against the Crown in right of its Government in the United Kingdom and if the Crown

Proceedings Act, 1947, of the United Kingdom had not been passed, it might have been enforced in England, subject to the grant of Her Majesty's fiat, by petition of right, then, subject to this Act, the claim may be enforced by proceedings taken against the Government for that purpose in accordance with this Act. The section evidently shows among others that Uganda applies the common law principles before 1947 to proceedings against government.

Unenforceable Contracts

They may be unenforceable contracts against government. Examples of such contract are void contracts, contracts deemed to be contrary to public policy for instance contracts to commit crimes, illegal contracts, and contracts entered into when the parties had no capacity. **Stinger Vs Minister of local government**

Contracts involving money payment are only enforceable where parliament has provided for the necessary funds. Contracts which may be in form of treaties are unenforceable in the domestic perspective unless they have been part of municipal law.

Characteristics of government contracts



The contracts have usual attributes of private contracts e.g consideration, agreement, parties, terms and conditions. There are however, special features which are common in government contracts;

1. They are normally executed by senior public officers usually a minister, permanent secretary or an ambassador especially if the country and public officer executing the contract on behalf of government. Personal liability may arise where public officer has failed / refused to oblige with the applicable law and procedures.

2. They are usually executed after the tendering process; it is an open and competitive bidding process.

3. Entered on standard terms and conditions of contract, government sets terms and conditions and the other party usually accept in a stronger position in bargaining position and set terms.

TORTS

Section 3 of the Government Proceedings Act (herein called GPA) provides that subject to this Act and section 4 of the Law Reform (Miscellaneous Provisions) Act, the Government shall be subject to all those liabilities in tort to which, if it were a private person of full age and capacity, it would be subject (a) in respect of torts committed by its servants or agents; (b) in respect of any breach of those duties which a person owes to his or her servants or agents at common law by reason of being their employer; and (c) in respect of any breach of the duties attaching at common law to the ownership, occupation, possession or control of property, except that no proceedings shall lie against the Government by virtue of paragraph (a) of this subsection in respect of any act or omission of a servant or agent of the Government unless the act or omission would, apart from this Act, have given rise to a cause of action in tort against that servant or agent or his or her or estate.

Section 3 (2) of GPA, provides further that, where the Government is bound by a statutory duty which is binding also upon persons other than the Government and its officers, then, subject to this Act and section 4 of the Law Reform (Miscellaneous Provisions) Act, the Government shall, in respect of a failure to comply with that duty, be subject to all those liabilities in tort, if any, to which it would be so subject if it were a private person of full age and capacity.



Under section 3 (3) of the GPA, where any functions are conferred or imposed upon an officer of the Government as such, either by any rule of the common law or by any enactment, and that officer commits a tort while performing or purporting to perform those functions, the liabilities of the Government in respect of the tort shall be such as they would have been if those functions had been conferred or imposed solely by virtue of instructions lawfully given by the Government.

Section 3 (4) of the GPA states that any enactment which negatives or limits the amount of the liability of any Government department or officer of the Government in respect of any tort committed by that department or officer shall, in the case of proceedings against the Government under this section in respect of a tort committed by that department or officer, apply in relation to the Government as it would have applied in relation to that department or officer if the proceedings against the Government had been proceedings against that department or officer.

However, under section 3 (5) of the GPA, no proceedings shall lie against the Government by virtue of this section in respect of anything done or omitted to be done by any person while discharging or purporting to discharge any responsibilities of a judicial nature vested in him or her, or any responsibilities which he or she has in connection with the execution of judicial process.

From S.3 GPA Cap 77 above, government is liable in torts under the following limbs;

- Vicarious liability
- Employer's liability
- Occupier's liability.

Vicarious Liability

It arises like where there is master and servant relationships; employer and employees relationships. Under vicarious liability, a master / employer is liable for the torts committed by his servants during the course of employment while in duty. Such torts can only arise where a



servant is acting within the scope of employment. Thus, where a servant of the state commits a tort in the course of his employment, the servant and the state are jointly and severally liable. See section 3(1) (a) of GPA makes government liable for torts committed by its servants or agents.

What is scope of employment?

- a) Scope means doing what is expressly or by implication authorised.
- b) Doing what is authorised in a way which is not authorised e.g. driving recklessly.
- c) What is incidental or consequential upon what is authorised.

In **Muwonge Vs AG (1969) EA7**, Newbold P stated that 'the policemen had been sent to quell a riot and the means given to them was the rifle having found the riot going on, one of the police fired just like others. For that reason the use of rifles must have been contemplated by their seniors and thus the act of the policeman, was in the course of his duty and the government was vicariously liable.'

In **Piovano V AG [1972] EA**, Court held that the test to be applied in such cases was that, the wrong of the servant must be the natural result of his carrying on his master's business or duties. **Mukwase Vs AG (1972) HCB 29**

In **Namwandu V AG [1972] EA**, court held that at the time of the accident, the soldiers were acting on frolic of their own and not doing anything for their masters as such, government could not be held vicariously liable for the torts committed by them.

Employer's liability

S.3 GPA provides that government will be liable for breach of those duties which a person owes his servant or agents at common law by reason of being their employer.

- a) Reasonable for safety in employment by employing competent staff.

- b) Provision of safe, suitable place and tools of work which are appropriate.
- c) Provision of effective supervision and system of work e.g. when injured at work, compensation is provided for under worker's compensation act, an employer has a duty to pay



Occupier's liability

Government as an occupier of premises is also under a legal obligation to ensure safety of those premises. S.3 GPA makes government liable for breach of those duties which under common law are attached to ownership, occupation, possession or control of property and generally these duties relate to safety of the property to invitees(people who are legally there) or neighbours (persons likely to be affected by that) e.g. nuisance.

Exceptions to liability

Liability of government may in some cases be limited in certain circumstances e.g

1. Where under any law, the responsible officer of government is absolved from liability for a particular act/ omission e.g. police officers are not liable when they act in good faith in carrying out their duties as under the police act.

2. Judicial immunity which protects judicial officers who may act in a manner which inconveniences other persons e.g. wrong decision. In **Anderson Vs Gorrie**, Court was of the view that no action can lie against a judicial officer even where it is shown that the judicial officer was malicious or corrupt. In **AG Vs Oluoch**, the Magistrate was sued together with the AG and police officers for wrongful arrest and detention. AG challenged the suit was misconceived because it was brought against magistrate who had judicial immunity. Court held a suit could not be maintained against a public officer who had judicial immunity.

3. Act of state doctrine as a defence.

This means that transaction between state and foreign powers can not give rise to any action/suit under municipal law to individuals.

In **Olle Njogo Vs AG**, which involved the treaty between British government and Masai county and British government challenged the suit since it was an act of state and can not lie in a municipal court. Court held not acceptable to sue state. In

Katikiro of Buganda Vs AG, the State successfully plead act of state doctrine relating to 1955 Buganda agreement.



4. Torts committed by members of armed forces, as member of the armed forces can not sue government for personal injuries which are inflicted by another member of the forces while on duty.

PROCEDURAL MATTERS

S.7 GPA provides all civil proceedings by or against the Government in the High Court shall be instituted and proceeded with in accordance with rules of court and not otherwise. There are however, a few exceptions which are mainly contained in Civil Procedure and Limitation Act (miscellaneous provision Act).

NB. To protect public interest some of the important procedural matters include; specific procedures which apply to government not other entities.

1. Statutory notice.

S.2 of Civil Procedure and Limitation (miscellaneous provision) Act It provides inter alia that no suit shall be brought against government, local authority or scheduled corporation until a statutory notice of 45 days has been served. The purpose of the notice has been served to appropriate officer (Attorney General) or the head of scheduled corporation or CAO in Local Government. The requirement of notice are based on the idea that on receipt of notice, government will make a decision as to it's whether it is necessary to entertain the suit.

The notice includes the substance of the claim, amount of money claimed or other relief and also a summary of elements supporting the claim. The section also provides that the plaint against the government must also include the clause specifically pleading that notice was served.

2. Suits against the government are brought against the AG article 119 of the Constitution. It provides that the Attorney General shall represent government in courts or any other legal proceeding in which government is a party. Section 10 of the

GPA, provides that Civil proceedings by or against the Government shall be instituted by or against the Attorney General. Section 11 thereof requires that all documents required to be served on the Government for the purpose of or in connection with any civil proceedings by or against the Government shall be served on the Attorney General.



3. Suits against AG may be brought in any court which has jurisdiction over the matter in question. The AG may however, apply for a suit to have the suit transferred to high court, if it is filed in lower courts and AG may make the application where there is an opinion that an important matter of law may arise from that suit. This is provided under section 13 of the GPA.

4. Limitation periods relate to periods in which an action must be brought against a party. Under

S.2 of Civil Procedure and Limitation Act, no action founded on tort can be brought against government, local authority or scheduled corporation after the expiry of 2 years from the date of which the action was done. The section also provides that no action founded on contract shall be brought after expiry of 3 years from the date on which the action arose.

Other rules which give special exemption to government relate to remedies and evidence. Remedies in civil proceedings may with a few exceptions be made available against government. However, there some remedies which are not available against government as provided under section 14 of the GPA. These include;

a) Injunction .

b) Specific performance and

C) No remedy of attachment can issue against government property i.e. can not attach government property. Section 19 (4) of the GPA Cap77. It provides that except as is provided in this section, no execution or attachment or process in the nature of an execution or attachment shall be issued out of any court for enforcing payment by the Government of any such money or costs as are referred to in this section, and no person shall be individually liable under any order for payment by the Government, or

any Government department or any officer of the Government as such, of any such money or costs.

S.14 Civil Proceeding and Limitation Act, provides that an injunction, specific performance and attachment can not be awarded.



S.19 of GPA provides for the state faction of orders against government where a person has been granted, he can on application in that behalf made at any time after the exemption of 21 days from date of the order or in case the order of costs to be paid.

d) An ex parte judge can not be made in default of appearance of government under the Government Proceedings (civil procedure) Rules.

e) State privilege in the law of evidence S.121 EA and 132.

They give the state privilege in the law of the evidence, that public officer can not be compelled to give evidence relating to confidential government public communication.

See article 41 of the Constitution. See, Tinyefunza Vs AG see Zachary Olum & Anor v AG Is it a justifiable protection of the state? EA are they in line with art 41